

Making Bureaucracy Work

*Norms, Education and Public Service
Delivery in Rural India*

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Bureaucratic Norms

A Theory of Implementation

The central problem of planning is increasingly that of implementation, and the problems of implementation are essentially those of politics, social organization and cultural values ... The result is often a great hiatus between law and reality, between what is willed by the national leadership and what is done at the local level, between the high ideals in New Delhi and the cynicism in the mofussil towns.

– Myron Weiner (1962, 239)

2.1 INTRODUCTION

In developing countries, the enactment of public policy is not the end of politics, but often just the beginning. Marginalized citizens struggle to obtain essential services, their experiences made contingent on the behavior of street-level bureaucrats. Chapter 1 introduced the contemporary challenge of implementing primary education in India. Implementation hurdles have long occupied India's state planners. In his pioneering studies of Indian politics, Myron Weiner (1962, 1991) observed striking deficiencies in the law's implementation, the hiatus between what he called the "rhetoric" of rights etched in the Indian Constitution and the "reality" of service delivery in the rural hinterlands. His explanation for these gaps emphasized cultural values rooted in the unequal social order of caste, which legitimated state inaction and dampened bureaucratic motivation to secure the welfare of disadvantaged children. The discriminatory structures of caste and patriarchy continue to have a pernicious influence in India. Yet, subaltern groups have mobilized in many places, demanding education and other social rights from the state (Heller 1999;

Kruks-Wisner 2018; Ahuja 2019; Auerbach 2019). India also displays large subnational differences in social service provision, which cultural arguments are hard-pressed to explain (Mehrotra 2006; Singh 2016).

Cultural explanations for the state's lackluster performance have given way to an emphasis on electoral incentives. Voter-politician relations in India are found to be clientelist, anchored on the exchange of targeted goods, disconnected from programmatic public services (Keefer and Khemani 2004). Indian elections are fought on ethnic lines and politicians appeal to narrow identities to compete for votes, rather than social policy platforms (Chandra 2004). Caught in the clutches of clientelism, bureaucrats are expected to surrender their discretion to political forces. Yet, social services do not flow like water from a tap, for politicians to turn on or off at will. Implementation operates through complex webs of institutional rules, resources and relationships, involving a constellation of state and societal actors. Moreover, programmatic services do sometimes reach citizens, despite great odds.

This chapter takes up the challenge of explaining how developing country states implement services like primary education, and why some do so more effectively than others. My argument casts light on the quotidian bureaucracies that interact with citizens regularly, transforming social policies into concrete services. I advance a theory centered on differences in bureaucratic norms, the unwritten rules of the game, that guide the internal behavior of bureaucrats and their external relations with society. Bureaucratic norms influence how state officials collectively interpret and enact their policy mandates. They also condition citizen expectations and collective strategies for monitoring services, thereby impacting the quality of services and associated outcomes. My framework proposes two ideal types, legalistic and deliberative bureaucracy, and theorizes the mechanisms through which they drive implementation to yield divergent outcomes for primary education. Whereas a venerable scholarship on bureaucracy and the rule of law recommends legalistic bureaucracy as an antidote to laxity and the surest path to effective implementation, I argue instead that deliberative bureaucracy has distinct advantages for the delivery of complex services like primary education. Drawing on disciplinarily diverse literatures on institutions, organizational theory and policy feedback, I argue that deliberative bureaucracy enables officials to undertake complex tasks and sustain societal monitoring, generating higher quality services.

In what follows, I first unpack the concept of policy implementation and operationalize it for the domain of public services like primary

education. I then present comparative indicators that capture the varied performance of primary education across states in northern India, the empirical puzzle motivating this book. Next, I develop a theory that elucidates the differences in bureaucratic norms and the mechanisms by which they produce variation in implementation patterns and outcomes. I then examine the political origins of bureaucratic norms, which I argue, diverge depending on the historical processes of state-building at the subnational level and the incentives and strategies of governing elites in relation to the central state. I also highlight how my theoretical argument differs from prior approaches to bureaucracy and development. I then flesh out the scope conditions of the theory and contrast it with alternative political explanations for the implementation of public services.

Implementing primary education and other capability-enhancing services presents enormous challenges for developing country states (Evans and Heller 2015). I do not suggest that bureaucratic norms always constitute the best or only answer to these challenges. Nor should an appreciation of bureaucratic commitment blind us to bureaucracy's defects. Recognizing that bureaucracies are collective agencies bound by norms enlarges our theoretical vocabulary and suggests new institutional pathways for services to reach citizens.

2.2 POLICY IMPLEMENTATION: CONCEPTS AND MEASURES

The growing scholarship on state capacity and institutional performance in developing countries has spawned a lively debate on what it means to govern well.¹ Beyond academia, international development agencies like the World Bank have promoted a “good governance” agenda, commissioning studies and conferences around institutional efficiency, transparency and accountability (Kaufman 2005). Governance refers to the ability of the state to formulate and implement policy rules on society (Fukuyama 2013). This book deals with the latter process, though the line between policy choice and implementation is often ambiguous. In this section, I conceptualize policy implementation and then operationalize it for the policy domain of primary education. I also present comparative education indicators for the empirical context of northern India, showcasing the divergence in outcomes across states.

¹ See the literature reviews on state capacity and bureaucratic service delivery by Pepinsky, Pierskalla and Sacks (2017), Berwick and Christia (2018) and Khemani (2019).

2.2.1 Conceptualizing Implementation

Until recently, implementation captured little attention from the scholarship on institutions. Research was dominated by questions of institutional choice, how elites design the “rules of the game” to facilitate and constrain behavior (North 1990). Inspired by the New Institutional Economics, institutions were analyzed in relation to their influence over market failures and collective decisions (Williamson 2000). How institutions function on a quotidian basis, that is, how institutional agents interpret and enact the rules of the game, was accorded less attention. Expectations about strong formal institutions in advanced economies, “characterized by a tight coupling between formal rules and actual behavior,” may have led scholars to eschew these questions (Levitsky and Murillo 2009, 117).² On the other hand, comparative and historical institutionalists have recognized that the rules of the game do not mechanically sustain themselves. Studies of institutional persistence and change have explored how agents make sense of the rules and negotiate conflicts over their interpretation (Mahoney and Thelen 2010). The assumption of tightly coupled rules and behavior, even in comparatively “strong” institutional environments, has been questioned. As Thelen writes, “rules are never ‘simply’ applied, they are always interpreted, enforced and enacted, and, of course, by actors who have divergent and conflicting interests” (2009, 490–491). Questions of rule interpretation are familiar to those holding a sociological lens to institutional analysis (DiMaggio and Powell 1983). Institutions are vested with meanings that fundamentally shape political interests and behavior (March and Olsen 1989, 48).

Implementation is of central concern to the literature on state capacity and social welfare. In developing countries, where institutions are comparatively weak and administrative resources limited, implementation is a political act with direct material consequences for citizens (Grindle 1980).³ Building on Mann’s (1984) notion of state infrastructural power, I define policy implementation as the series of tasks undertaken by individuals and groups for achieving the state’s policy objectives over

² Hall and Taylor (1996) outline three schools of institutionalism: rational choice, historical and sociological. The “tight coupling between formal rules and actual behavior” is perhaps most salient in rational choice approaches, which theorize institutions as systems producing equilibrium order.

³ Also see Van Meter and Van Horn (1975), Sabatier and Mazmanian (1979) and Pressman and Wildavsky (1984).

its territory. This definition presumes that policies are formulated and reflect the goals of the state.⁴ The territorial dimension of implementations points to subnational differences in the state's ability to deliver services (Soifer and vom Hau 2008). Territorial unevenness and regional variation in state capacity is well recognized by scholars of comparative politics (O'Donnell 1993; Ziblatt 2008; Niedzwiecki 2018). Adding to this, I emphasize the multiplicity of tasks, following the work of public administration scholars. Brehm and Gates (1999, 63) suggest that tasks are "the fundamental unit of bureaucratic organization," an idea traceable to Adam Smith's conception of division of labor.⁵ However, unlike Smith's hypothetical pin factory, which divided labor into a few discrete tasks (e.g., cutting the wire and assembling the pinhead), the implementation of services involves many interrelated tasks of varying complexity. The notion of task complexity builds on Simon's (1965) theoretical distinction between "programmable" and "nonprogrammable" decisions, which differ according to their cognitive and administrative complexity.

Attention to the multiplicity of tasks involved in public service delivery is also warranted in light of the *politics* of implementation. Fundamentally, implementation is a political process connecting policy decisions to concrete services and outcomes for citizens. As Kramon and Posner (2013) suggest, studies based on a single policy outcome indicator (e.g., rates of literacy or school enrollment) risk making incomplete or distorted conclusions about distributive politics. Restating their argument from a task-based perspective, because the political dilemmas of implementation vary between tasks, focusing on one task (or implementation indicator) limits our understanding of the wider politics at play. In education policy, the provision of primary, secondary or tertiary schooling presents distinct political tradeoffs for the state (Kosack 2012). Within the primary education arena, studies show that the politics of encouraging enrollments can differ from the politics of infrastructure provision (Harding and Stasavage 2014), which differs from the politics of schoolteacher management (Ramachandran et al. 2018), which again can differ from the

⁴ Mann's concept of infrastructural power can be differentiated from Putnam's (1994, 8–9) notion of "institutional performance," which incorporates both policy formulation and implementation. For Mann, policy formulation is a separate activity, indicating the state's *despotic* power, that is, the ability to make autonomous decisions. Fukuyama (2013) sharpens the state autonomy–capacity distinction and explores its interrelationships. Also see the helpful discussion in Hanson and Sigman (2013).

⁵ Brehm and Gates cite James Q. Wilson's formulation that "[p]eople matter, but organizations matter also, and tasks matter most of all" (1989, 173).

politics underlying quality-oriented school reforms (Bruns, Macdonald and Schneider 2019). A multidimensional perspective equips us to see the wider political forest and identify potential conflicts and tradeoffs that different tasks present for the state.

In addition to tasks, my understanding of implementation places the spotlight on the role of *society*. Recognizing that the boundary between the state and society can be porous, Evans (1995, 12) argues that state “embeddedness” in society improves industrial policymaking by creating “institutionalized channels for the continual negotiation and renegotiation of goals and policies.” The notion of embeddedness may be even more applicable to the implementation of public services, which involves street-level bureaucrats, who regularly interact with citizens (Lipsky 1980).⁶ Moreover, as Ostrom’s (1996) agenda-setting work demonstrates, public services are not simply provided by state agencies but “co-produced” with societal groups. Studies suggest that institutionalized forms of coproduction can lead to better schools, more dependable health clinics and safer factories (Joshi and Moore 2004).

However, coproduction is more than an efficient technique of governance. It invites power differences and conflicts, among societal actors as well as between the state and society (Cornwall and Gaventa 2000). Primary schooling, for instance, requires joint effort by teachers, administrators, parents and children, as well as from the wider communities in which schools are embedded. The political interests and capabilities of these participants may vary and conflict. Teachers are more likely to organize themselves into unions, improving their bargaining position vis-à-vis parents.⁷ In unequal societies, such as rural India, poor households, lower castes and rural women often face exclusionary norms that obstruct their full participation in service delivery (Heller and Rao 2015). Where patriarchy is pronounced, the educational interests of girls can take a back seat, even when societal participation is robust (Drèze and Kingdon 2001). Coproduction can also spawn elite backlash, as when policies challenge status quo norms in society. Applying a political lens to coproduction thus raises thornier questions of how bureaucracies relate to marginalized groups and whether frontline officials work to counter (or reinforce) power imbalances during implementation.

⁶ Evans (2004, 2015) has extended the embeddedness argument to cover human development. Bhavnani and Lee (2018) show that officer embeddedness in India’s higher civil service improves public goods provision.

⁷ See the comparative literature on teacher unions and education reforms (Murillo 1999; Kingdon and Muzammil 2003; Moe 2011; Moe and Wiborg 2017; Schneider 2021).

2.2.2 Operationalizing Implementation

Focusing on administrative tasks and state–society interactions for primary schooling, I now operationalize the concept of implementation. Research in comparative politics has focused largely on cross-national differences in public education spending (e.g., budget shares and per-pupil expenditures) and aggregate outcomes, such as literacy rates.⁸ Taking a more granular approach, development economists, such as Pritchett (2013), distinguish between “schooling” goals and “education” goals. Schooling relates to input provision, such as the construction of school buildings, and teacher recruitment and training. Schooling also includes student enrollment, attendance and completion rates. Education, meanwhile, points to the acquisition of cognitive skills, measured by learning outcomes. Relatedly, political scientists, such as Corrales (1999, 2005), have studied the “coverage” of school systems and the “quality” of education, measured respectively by enrollment rates and standardized test scores.

In line with these granular approaches, I propose a contextualized measurement scheme, grounded in the administrative tasks for primary education. Andrews, Pritchett and Woolcock suggest the need “to think analytically about the diverse range of tasks within a given sector” (2017, 110). These scholars categorize administrative tasks by their “transaction intensity,” understood in technical and organizational terms. Additionally, I stress the political complexity of tasks, the power differences and conflicts arising in implementation. Figure 2.1 presents a taxonomy of tasks according to their degree of complexity. At the lower end of the complexity spectrum are *codifiable* tasks. These tasks involve routine decisions based on information that can be standardized and transmitted with relative ease. They include episodic, one-off activities, such as school enrollment campaigns. Codifiable tasks cover situations that are consistent in nature and require limited frontline agent discretion – the provision of infrastructure, textbooks and other “hard” inputs is one example.

At the middle range of the complexity spectrum, *intensive* tasks involve more difficult activities. They cover less predictable situations, calling for frontline judgment and contextual knowledge. Such tasks also summon interdependencies between state organs and society, raising the need for coordination and management of human relations, which is politically

⁸ For example, Lake and Baum (2001), Brown and Hunter (2004) and Ansell (2010).

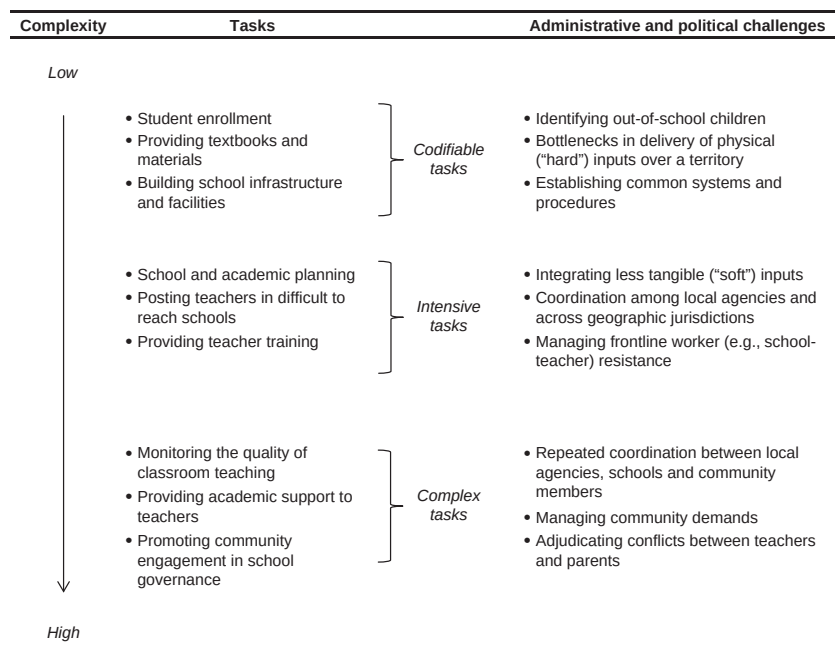


FIGURE 2.1 Taxonomy of administrative tasks in primary education

more challenging. Examples of intensive tasks include the posting of teachers to underserved schools and the provision of specialized services for disadvantaged students. State agents have to identify hard-to-reach populations and motivate teachers. The need for state–society coordination can also spark resistance, making it challenging for the state to depend on standardized procedures.

Finally, *complex* tasks are the most challenging from an administrative and political perspective. These tasks encompass open-ended problems and unpredictable situations, drawing on multiple agents whose decisions and actions generate feedback loops. State officials need to exercise a high degree of discretion and acquire even deeper contextual knowledge. Complex tasks include the family of “wicked problems” identified by public administration scholars (Weber and Khademian 2008; Peters 2017). These causally complex problems are difficult to plan for *ex ante* and create feedback loops between state and societal agencies. Examples include classroom teaching and routine monitoring of education services. These activities call for repeated, “thick” interactions between administrators, schoolteachers, children and parents. Politically, such tasks may

breed conflicts, particularly when state and societal actors have competing interests and understandings.

2.2.3 Comparative Indicators for Primary Education

To measure implementation, I assemble context-sensitive indicators for the codifiable, intensive and complex tasks involved in primary education delivery in rural India. These indicators are mapped on to measures of coverage (or schooling inputs) and quality (or learning outcomes) commonly used in the development and education literature, but they go further in helping to discern the differences in implementation across school systems. I use data from a nationally representative education survey, the Annual Status of Education Report (ASER), administered by Pratham, a globally recognized education NGO that operates throughout India.⁹

Table 2.1 contains measures of codifiable tasks, which relate to school access and the provision of hard inputs. These include the student enrollment ratio and the percentage of schools that have received the annual development grant provided by India's Sarva Shiksha Abhiyan (SSA) program. Bearing in mind that primary schools also have responsibilities for child health and nutrition, the table includes the percentage of schools meeting the legal obligations to provide the midday meal, India's flagship school meal scheme and a critical safety net for poor households. Figure 2.2 presents data on infrastructure provision. It shows the percentage of government primary schools in compliance with infrastructure standards stipulated by India's Right to Education [RTE] Act.

Among the four states, Himachal Pradesh (HP) performs the best on dimensions of access and provision of inputs (Table 2.1), though it does not perform noticeably better on school infrastructure indicators (Figure 2.2). An exception is the provision of libraries, which are available in nearly all primary schools surveyed in HP. This exception is notable since, among the infrastructure stipulations of India's RTE Act, libraries are more directly related to student learning. Uttarakhand also performs relatively well on codifiable tasks, as demonstrated through access indicators, with the exception of providing the school development grant, which is below average for India. The two highly populous states in the Gangetic plains, Uttar Pradesh (UP) and Bihar do marginally

⁹ The ASER survey is administered annually across rural India, covering all districts with a random sample of thirty schools per district. Information on the ASER survey's design and methodology is available at: www.asercentre.org/Wave/p/372.html.

TABLE 2.1 *School access and input indicators (2012)*

	Children aged 6–14 enrolled in school (%)	Schools that received SSA development grant (%)	Schools serving the midday meal (%)
Himachal Pradesh	99.0	90.9	98.0
Uttarakhand	97.0	76.5	95.1
Uttar Pradesh	93.9	69.7	95.0
Bihar	96.3	84.0	75.0
<i>All-India average</i>	96.7	78.8	87.4

Source: ASER (2013).

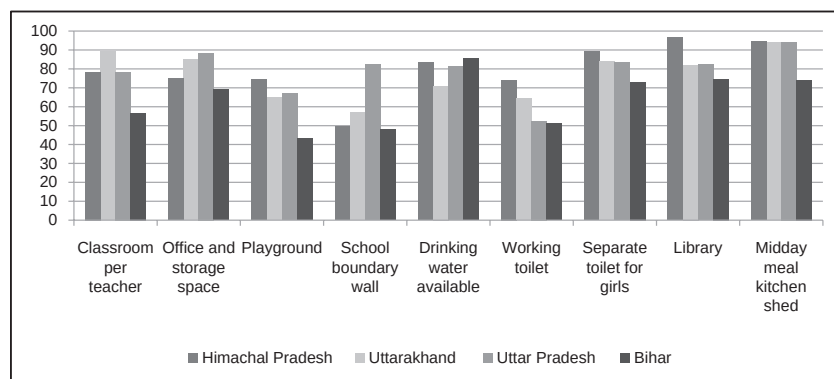


FIGURE 2.2 Primary schools (%) in compliance with RTE Act infrastructure standards

Note: Calculated as percentage of government primary schools in compliance with each infrastructure requirement.

Source: ASER (2013).

worse on codifiable tasks, though Bihar does far worse on midday meal provision.¹⁰ UP performs almost as well as HP on meeting compliance with infrastructure standards in Figure 2.2, with markedly better provision of school boundary walls.

The indicators for intensive tasks, presented in Table 2.2, tell us how school systems function at a routine level and handle progressively more

¹⁰ Qualitative research (Chapter 4) reveals that the midday meal in UP is often irregularly provided and of low quality.

TABLE 2.2 *Student participation and teaching input indicators (2012)*

	Attendance rate for children aged 6–14 ¹ (%)	Girls aged 11–14 out of school (%)	Single-teacher schools (%)	Teacher absence rate ² (%)
Himachal Pradesh	89.9	1.8	6.1	14.9
Uttarakhand	81.9	3.8	12.9	13.2
Uttar Pradesh	54.9	11.5	7.5	20.0
Bihar	58.3	5.2	5.1	21.9
<i>All-India average</i>	71.9	6.0	9.0	14.8

Notes:

1. Attendance rate is the percentage of enrolled children present on the day of the survey team's school visit.

2. Teacher absence rate is the percentage of teachers absent for unofficial reasons on the day of the survey team's school visit.

Source: ASER (2013).

difficult activities. The rate of student attendance, which is more challenging than mere enrollment, indicates the regularity of child participation in school. The share of girls in the higher age bracket (11–14 years) who are out of school indicates the school system's ability to retain adolescent girls, a major challenge facing India's school system (Azam and Kingdon 2013). Table 2.2 also has two input-based indicators for teaching used by education researchers in India, the percentage of schools served by only a single teacher and the rate of schoolteacher absence. These tasks are intensive since they require state agencies to coordinate activities and overcome possible resistance from teachers.

HP and Uttarakhand perform comparatively well on student participation indicators, though HP does better overall in terms of out-of-school children and teaching inputs. Teacher absence in HP is slightly worse than in Uttarakhand, but the share of single-teacher schools in Uttarakhand is much higher, which means that absences in the latter case tend to be more disruptive for students. Despite having a similar geographic terrain as HP, Uttarakhand appears to be less successful in posting teachers to remote villages. UP and Bihar perform far worse on indicators of student participation. It appears that many enrolled children do not attend school regularly. In UP, more than one out of ten girls in the adolescent age cohort (11–14 years) are not in school, nearly twice

TABLE 2.3 *Student learning indicators (2012)*

	Students in fifth grade with basic reading skills ¹ (%)	Students in fifth grade with basic arithmetic skills ² (%)
Himachal Pradesh	72.8	48.7
Uttarakhand	58.4	35.0
Uttar Pradesh	42.7	21.1
Bihar	44.4	31.4
<i>All-India average</i>	46.8	24.8

Notes:

1. Basic reading ability is the percentage of students in fifth grade who can read from a second-grade textbook.

2. Basic arithmetic ability is the percentage of children in fifth grade who can perform simple division.

Source: ASER (2013).

the national average. Bihar does better on indicators of student participation, but teacher absence is comparatively worse.

Finally, Table 2.3 contains indicators for the complex tasks involved in providing quality education, measured by student learning outcomes. Pratham's ASER survey administers a reading and mathematics exam to rural fifth graders, which asks them to read from a second-grade textbook and perform simple arithmetic. Learning levels throughout rural India are far from adequate. Almost half of rural fifth graders cannot read and a quarter of them cannot perform basic arithmetic. Weak learning outcomes at the aggregate level mask the sizable variation across states. Learning levels in HP are much better than in other states, though there too there is much room for improvement.

Learning outcomes are conditioned by multiple factors, of course, including the socioeconomic background of students, such as household income, parental education attainment and at-home support for children (Hanushek and Woessmann 2011). Rural adult literacy in HP (81.9 percent) is above the national average (68.9 percent), and so some degree of student achievement can be attributed to higher parental education. Yet, student learning outcomes are considerably worse in Uttarakhand, even though it too has above-average rural adult literacy (76.3 percent). Some portion of the gap in student learning between HP and Uttarakhand can likely be attributed to state failures to provide adequate education

services. Student learning outcomes in UP and Bihar are exceedingly low by comparison and closer to the all-India average. The weak performance of these states partly reflects the fact that many students enrolled in government schools are first-generation learners, whose parents may not have attended school. Having noted these caveats, it should be emphasized that the ASER survey tests for the most rudimentary skills in reading and arithmetic, skills that one reasonably expects all students to gain from school, irrespective of social background. To supplement the quantitative indicators here, Chapters 4–7 provide rich, qualitative evidence from fieldwork, further detailing the stark differences in how school systems function across the four states.

2.3 THE ARGUMENT

Having defined the concept of implementation and operationalized it for the context of primary education in northern India, I now present my theoretical argument centered on differences in bureaucratic norms. Subject to the same formal institutions, I argue, state agencies can have different informal bureaucratic norms, which generate variation in the implementation of primary education. In this section, I first define bureaucratic norms and situate the concept within a broad literature on institutions and public administration. I then introduce the mechanisms of my argument. Next, I construct an analytical typology of bureaucratic norms, anchored on the concepts of legalism and deliberation, and highlight their differences on various organizational dimensions. I theorize the mechanisms by which these two distinct forms of bureaucracy produce varied implementation patterns and outcomes.

2.3.1 Bureaucratic Norms

Scholars have long observed that bureaucracies operate according to norms (Barnard 1938; Kaufman 1967; Wilson 1978; DiIulio 1994). Weberian bureaucracy, whose hierarchical design and meritocratic structure has been the subject of many studies, is undergirded by a “bureaucratic ethos” rewarding competence, honesty and impartiality (Du Gay 2000). Before considering why bureaucratic norms matter for public service delivery, we should first be clear on what is meant by norms. Norms are informal rules of conduct that instruct agents on how to act within a social context. Social theorists, such as Elster (1989) and Ostrom (1990), maintain that models of instrumental rationality – an agent’s choosing the course

of action that produces the highest expected material payoff – although powerful in many respects, are insufficient for explaining human behavior. Social actors, they suggest, have a larger behavioral repertoire that includes responsiveness to norms.

Theories of norm-driven behavior have two essential characteristics. First, they are not outcome oriented by design, meaning that norms do not in themselves point to actions producing results that an agent always prefers. I may or may not, for example, enjoy the consequences of having to remove my hat in a church. Norms can be distinguished, then, from consequentialist principles of action, such as instrumental rationality, whereby an agent acts so as to best satisfy her preferences. Norm-driven behavior need not, however, be beneficent or altruistic.¹¹ The decision to comply with a norm can be informed by instrumental, means–ends calculations. Fear of public reprimand may motivate me to remove my hat before entering a church. However, the desirability of the action to the agent is independent of the norm itself. Second, norms do more than describe patterns of behavior. They prescribe how people *ought* to behave. I may choose to remove my hat in church for reasons unrelated to a norm, if, say, the building has poor ventilation and removing the hat brings me comfort. By influencing how alternative actions are perceived and weighed, norms advise a course of appropriate action. Norms also serve as a yardstick for evaluating the conduct of others. These considerations do not imply that individuals always accept normative prescriptions or internalize them as part of their personal moral beliefs. To presume so would run afoul of Granovetter’s (1985) critique of “oversocialized” conceptions of the individual. Granovetter distinguishes between norms and beliefs, suggesting that norm-driven behavior is neither mechanical nor deterministic, but *contingent* on expectations of others and grounded in concrete social relations.

This book is concerned with a special class of norms, namely, those regulating public bureaucracies. Although norms are widely observed within private sector organizations as well, public bureaucracies have characteristics that merit special attention.¹² Public agencies have policy mandates that are often vague, conflicting and difficult to measure (Wilson 1989).

¹¹ On the connections between norm-driven behavior, beneficence and altruism, see Bicchieri (2016).

¹² Gouldner’s (1954) classic study of industrial bureaucracy in a gypsum plant shows how norms of reciprocity between supervisors and subordinates emerged and eroded over time. See also the seminal treatises on corporate culture in private firms (Kotter 1992).

Policy rules can be ambiguous or incomplete, often as a consequence of the policymaking process (Baier, March and Saetren 1986). For example, India's RTE Act fixes a legal duty on the state to provide free and compulsory primary education, but leaves unspecified who within the state (e.g., legislators, administrators and teachers) bears final responsibility for violations of the law. Even when policies are clearly written, residual uncertainty arises over when and how to apply rules in particular instances, creating the need for bureaucratic discretion. Managing discretion is central to the work of street-level bureaucrats (Lipsky 1980; Maynard-Moody and Musheno 2003; Piore 2011). These officials interact frequently with citizens and have to make complicated policy judgments when responding to individual cases.

I define bureaucratic norms as the informal rules that influence how bureaucrats relate to one another and understand an agency's collective purpose. Bureaucratic norms have two important features: (1) they are broadly understood and shared by an agency's members and (2) they are sustained in interactions that signal the approval (or reward) and disapproval (or sanction) of behaviors by fellow members.¹³ Bureaucratic norms help orient state officials and align their behavior with collective goals, motivating them to act beyond narrow self-interest. To illustrate, Kaufman's (1967) landmark study of the United States Forest Service identified the normative "glue" that held the agency together, helping to steer geographically dispersed Forest Rangers toward a common purpose. Bureaucratic norms provide standards for behavior that is considered mandatory, permissible, prohibited and exemplary within an agency.¹⁴ Exemplary behavior is important because, as Levi and Sherman argue, "[a] highly effective bureaucracy is one that evokes not only competence and honesty among its employees but also sustained extra effort and initiative" (1997, 332). Accordingly, research on the developmental state suggests the importance of bureaucratic norms for industrial transformation in late-developing countries (Woo-Cumings 1999; Haggard 2018). Autonomous, high-powered Weberian agencies in charge of industrial policy are shown to have facilitated rapid economic growth in East

¹³ March and Olsen (2013) refer to these norm-driven dynamics as institutional "logics of appropriateness."

¹⁴ Brinks (2006) enumerates norms that require, permit or prohibit actions by officials. To this I add norms for exemplary action. Supererogation, action that goes above and beyond the call of duty, commands special moral recognition. J.S. Mill (1969 [1865]) hailed the distinct value of non-obligatory meritorious action.

Asia (Johnson 1982; Amsden 1989; Wade 1990). Along with Weberian structures, Evans has called attention to “bureaucratic norms and relations within the state apparatus,” which reinforce commitment to high performance (1995, 71). Studies of public service delivery in developing countries likewise suggest the importance of bureaucratic norms and cultures. Tendler’s (1997) pathbreaking study of the health bureaucracy in the Brazilian province of Ceará reveals how, against expectations of patronage and corruption, bureaucratic norms instilled commitment among frontline health workers, supporting high quality services. Related findings emerge from research on “pockets of effectiveness” in developing countries, institutional enclaves of high performance in otherwise unfavorable political contexts (Geddes 1990; Grindle 1997; Leonard 2010; Roll 2014; McDonnell 2020).

Before I explore the mechanisms of my argument, it would help to differentiate a theory centered on bureaucratic norms with a principal-agent approach to bureaucracy. Scholars have modelled bureaucratic relationships and the dilemma of task delegation as a series of contracts between political principals and bureaucratic agents (or between supervisory and subordinate agents), to analyze the ways that hierarchical control may align the interests of principals and agents (McCubbins, Noll and Weingast 1987; Moe 1989; Huber and Shipan 2002).¹⁵ This literature powerfully demonstrates the importance of formal institutional design and authority relations. It also has limitations, which become more apparent in the domain of frontline public services.¹⁶ Public service bureaucracies exhibit what Dixit (2012) calls “multidimensional complexity,” that is, they are responsible for multiple tasks, have multiple levels of hierarchy and are accountable to multiple principals, including supervisory officials, elected leaders and nongovernmental stakeholders. Designing explicit contracts and incentive schemes to encourage high performance on complex tasks, such as teaching, is inherently difficult.¹⁷ Teachers may be induced to work toward measurable goals, resulting in distorted efforts (Holmstrom and Milgrom 1991).

¹⁵ See the review by Gailmard and Patty (2012). These approaches build on the economics of organization literature, which treat principal-agent relations in a manner akin to the conflicts of interest between the owners and managers of firms (Moe 1984; Williamson 2000).

¹⁶ The principal-agent literature’s neglect of bureaucratic norms and culture has been critiqued. See DiIulio (1994), Meier and O’Toole (2006) and Fukuyama (2013). Also see the discussion in Pepinsky, Pierskalla and Sacks (2017, 253–257).

¹⁷ Dixit (2002, 718–721) illustrates these arguments with the example of education.

Principal–agent approaches are also confounded by the institutional context in developing countries. Laws in developing countries often far exceed what bureaucracies can practically deliver and the pervasiveness of informal rules limits the purchase of formal contracts (Helmke and Levitsky 2004). While discretion is a common feature of street-level bureaucracies, the *de facto* discretion of local officials in developing countries is possibly greater. In rural China, Tsai observes, “[l]ocal officials have so much discretion in policy implementation that both citizens and researchers often refer to policy making by local officials rather than policy implementation” (2007, 7). The notion that politicians, higher-level bureaucrats and other principals control frontline officials is also questionable. In India, local agencies are entrusted to deliver a wide array of development programs. The proliferation of policy rules has placed extraordinary demands on frontline officials, amplifying the need for them to exercise discretion and jointly define priorities (Kapur and Mukhopadhyay 2007; Dasgupta and Kapur 2020).

Recognizing that norms are collectively instituted, my analytical framework identifies public agencies as organizational sites of collective action (March and Olsen 1989; Ostrom 2000). This approach is consistent with “relational” understandings of bureaucracy, which emphasize repeated interactions that evolve dynamically across time (Carpenter and Krause 2014). Research on relational contracting explores how market exchange and coordination is underwritten by recurring social interactions and norms of cooperation, what Durkheim called the “non-contractual elements of contract.” Relational approaches to bureaucracy point to the recurrent exchanges among state agents and between them and societal actors (Bertelli and Smith 2010).¹⁸ Accordingly, in what follows, I develop a typology of bureaucratic norms that highlights the alternative ways that officials understand their collective duties and relate to citizens on the ground.

2.3.2 Mechanisms of the Argument

I have so far described the theoretical contours of bureaucratic norms and their importance for public service delivery in developing countries. I now outline the causal mechanisms through which bureaucratic norms influence policy implementation. Summarized in Figure 2.3, the first

¹⁸ See also the related work on governance and trust-based relations (Braithwaite and Levi 2003).

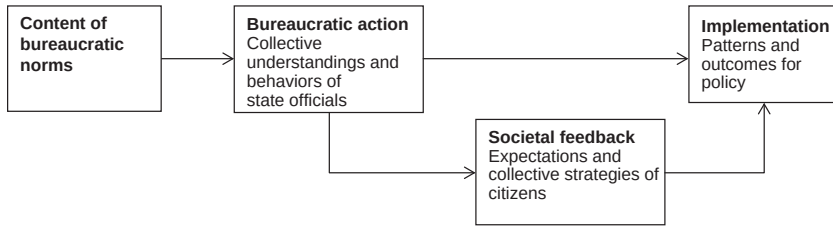


FIGURE 2.3 Summary of the argument

causal mechanism operates through bureaucratic action. I argue that bureaucratic norms drive implementation by influencing the *collective understandings and behaviors* of state officials. Before they can apply the law, bureaucrats need to interpret the law and what it demands of them (Yanow 1996). In agencies tasked with social service provision, street-level bureaucrats have to make fine-grained judgments over the meaning of policy rules. Given rule ambiguity and resource constraints, they must find ways to make practical sense of their duties. Bureaucratic norms provide the “framework of a set of tacit rules and procedures” that allow frontline agents to reach collective judgements over the use of discretion (Piore 2011, 150). Officials invoke norms when interpreting policies in specific cases and deciding on a course of action. These actions have material consequences for citizens and create moral dilemmas on the job (Brodkin 1997; Zacka 2017). Bureaucratic norms provide a way for officials to make sense of moral quandaries emanating from their work.

Bureaucratic action is necessary for implementing public services, but it is insufficient on its own. For services to function well, societal input is also needed, as the research on coproduction and local collective action demonstrates (Ostrom 1996; Banerjee, Iyer and Somanathan 2007). The second causal mechanism through which bureaucratic norms operate is *societal feedback*. Bureaucratic norms influence how frontline officials handle routine complaints and conflicts, such as those between service providers and households. The mechanism of societal feedback underscores the iterative process of public service delivery, involving repeated state–society interactions. In seeking services, citizens gain exposure to the local state and learn about its operations.¹⁹ Learning occurs through direct experiences, say, when a mother drops her child off at school and

¹⁹ On how exposure to local agencies influences citizenship practices, see Mettler (2002), Soss (2005) and Kruks-Wisner (2018).

is greeted by teachers. Learning also happens indirectly, through conversations with neighbors and the narratives about local agencies that circulate within an extended social network. Through these exchanges, citizens come to “see the state” and anticipate how local bureaucracy may behave (Corbridge et al. 2005). Experiences with the local state accumulate over time, leading citizens to form expectations and collective strategies for monitoring public services.

2.3.3 Legalistic versus Deliberative Bureaucracy: A Typology of Bureaucratic Norms

Having sketched the mechanisms linking bureaucratic norms to policy implementation, I now propose an analytical typology of bureaucratic norms, centered on the concepts of *legalism* and *deliberation*, and trace the mechanisms by which they impact on the implementation of public services. Where legalistic bureaucracy urges fidelity to administrative rules and procedures, deliberative bureaucracy promotes flexibility and problem-solving.²⁰ These two ideal types of bureaucracy have distinct normative underpinnings and sustain different organizational commitments, as I demonstrate based on disciplinarily diverse literatures in normative political philosophy, organizational theory and public administration. In Table 2.4, I summarize the theoretical differences between legalistic and deliberative bureaucracies on multiple dimensions of organizational behavior.

Legalistic Bureaucracy

A powerful line of argument from the philosophy of law’s liberal tradition recommends legalism as an ethic for governance. In a seminal essay, Shklar identifies legalism as the “ethical attitude that holds moral conduct to be a matter of rule following, and moral relationships to consist of duties and rights determined by rules.” (1964, 1). The legal profession and institutions occupy Shklar’s inquiry, but the normative commitment to rule-following applies to various organizations, including public bureaucracies. For those in public office, legalism prescribes impartiality and consistency in the application of rules. Legalism also urges fidelity to procedure, as elaborated in the classical liberal notion of “rule of law,” defined as a system of rules that are public, general in formulation, clear in meaning and applicable to all members of a polity (Hayek 1944, 54). Legalism imposes limits

²⁰ To ensure clarity, I use the adjectives “legalistic” and “deliberative” when referring to bureaucracies that exhibit these divergent types of bureaucratic norms.

TABLE 2.4 *Typology of bureaucratic norms*

Dimensions	Legalistic bureaucracy	Deliberative bureaucracy
Normative orientation	Rule based	Problem based
Organizational dynamics	Officials protect hierarchical boundaries and procedures	Officials participate across boundaries and modify procedures
Communication	Vertical lines of communication, primarily through formal channels	Vertical and horizontal lines of communication, through formal and informal channels
Information	Prioritize official knowledge, written documents and governmental data sources	Allow both official and colloquial knowledge, written and oral accounts and diverse data sources
Frontline agent discretion	Select among existing policy rules in response to particular cases	Modify policy rules or create unofficial rules in response to problems arising in particular cases

on state power by regulating administrative processes “in accordance with predetermined rules of considerable generality and clarity” (MacCormick 1989, 184). These precepts prevent states from exceeding their authority and help protect individual liberties.

As a norm of public administration, legalism is articulated most fully in the writings of Max Weber (1947).²¹ In his studies of Europe’s economic modernization, Weber observed the transition from patrimonial rule to a bureaucratic order that was rule-bound, hierarchical and meritocratic. The ideal-typical Weberian state was envisioned to motivate bureaucrats to set aside their private interests and advance the public good (Du Gay 2000, 2005). It did so by insulating bureaucrats from political pressures and instilling a commitment to rational-legal norms. Du Gay enumerates the ethical attributes of the Weberian bureaucrat to include “strict adherence to procedures, acceptance of sub- and superordination, *esprit de corps*, abnegation of personal moral enthusiasms,

²¹ Benhabib and Linden-Retek (2018) connect Shklar’s account of legalism thesis with Weberian rational-legal norms. On the links between liberty and Weberian bureaucracy, see also Du Gay (2005).

commitment to the purposes of office,” which allows the state to maintain impartiality (2005, 54).²² Moving from the individual bureaucrat to the collective agency, legalistic bureaucracy instills a *protective* organizational dynamic, urging deference to rules, procedures and hierarchical boundaries.²³ Supervisory officials use hierarchical authority to communicate goals and monitor subordinates, who in turn seek direction and upward accountability from superiors. Through the everyday enactment of hierarchy, bureaucratic authority gets preserved.

While hierarchical boundaries protect bureaucratic authority, fidelity to procedure restrains bureaucratic action. State officials committed to universal rules are expected to be more accountable and less prone to abusing their authority. In that way, bureaucrats are held “responsible for following rules with regard to their office with dedication and integrity and for avoiding arbitrary action and action based on personal likes and dislikes” (Olsen 2006, 5). Importantly, legalism encourages rule-based accountability, whereby bureaucrats are judged for following rules and *not* for the consequences that emanate from their actions (Kassel 2008). These Weberian precepts are supported by scholarship on bureaucracy and rule of law in developing countries. Cross-national studies find that the formal structures of Weberian bureaucracy – these include meritocratic selection, full-time employment, long-term careers and high salaries – contribute to economic growth and other outcomes (Rauch and Evans 2000; Dahlström and Lapuente 2017). Rational-legal norms, informal features of Weberian bureaucracy, are thought to be equally important (Evans 1995, 21–42; Lange 2005). Where rule of law is comparatively weak, bureaucratic commitment to abstract rules is seen as a bulwark against corruption and personalistic rule (Rothstein and Teorell 2008). Through fealty to explicit rules and written records, legalistic bureaucracy protects the state from the incursions of society and traditional forms of authority.

Deliberative Bureaucracy

An alternative school of thought recommends deliberation as an ideal for public administration. Deliberation involves the mutual exchange of ideas and reasons for the resolution of collective problems. The idea of deliberation has seen a resurgence in recent decades, in part because electoral democracy, a system of aggregating societal preferences through

²² On impartiality as a principle of governance, see also Rothstein (2011).

²³ Meyer et al. (2014) enumerate other features of legalistic bureaucracy.

votes, has proven wanting for addressing many of society's complex challenges (Keane 2009). Noting the limits of pure "procedural" democracy, deliberative theorists suggest that the mutual give and take of reasons makes democratic governance more substantive, robust, legitimate and fair (Elster 1998). Political philosophers, such as Habermas (1994, 1998) and Cohen (1996), have grounded democracy in public reason, a standard of communication in a political community that asks its members to justify decisions publicly and, thereby, orients them toward the common good.²⁴ While social scientists have studied deliberative governance institutions, such as public juries, citizen assemblies and deliberative opinion polls, deliberation inside bureaucracy has received less attention. Likewise, the bureaucratic norms that sustain deliberative governance are undertheorized.

Drawing on deliberative democratic theory as well as pragmatist philosophy, I conceptualize deliberative bureaucracy as a distinct ideal type. Deliberation, according to Bohman, is a "dialogical process of exchanging reasons for the purposes of resolving problematic situations that cannot be settled without interpersonal coordination and cooperation" (1996, 27). This definition underscores the need for *dialogue*, the give and take of reasons and arguments, to achieve mutual understanding. The discursive process makes public policy meaningful, legitimate and binding.²⁵ Deliberative bureaucracy induces very different orientations and organizational dynamics in comparison to legalism (see Table 2.4). At its core, deliberative bureaucracy induces a *participatory* dynamic that urges officials to negotiate policy problems through discussion and adjust their outlooks to shifting circumstances. Whereas legalistic bureaucracy strives for consistency with policy rules, deliberative bureaucracy encourages a more expansive interpretation of policy. Bureaucrats maintain a more flexible disposition, which reflects a willingness to entertain alternative viewpoints.²⁶

Further, deliberation as understood here is *problem*-driven, encouraging discussion around the resolution of practical dilemmas. The problem-driven ideal of deliberation is developed in John Dewey's (1927) pragmatic political philosophy. In his conception of democracy, public institutions

²⁴ Public reason, as a normative standard for the justification of democracy and its institutions, is elaborated in the political theory of John Rawls (1996).

²⁵ See Schmidt's (2008) account of "discursive" institutionalism as well as literature on deliberative policy analysis (Hajer and Wagenaar 2003).

²⁶ Gutmann and Thompson (1990, 80) discuss the value of flexibility in deliberation.

are designed to inspire problem-driven collective action by state and societal actors. Because problems are indeterminate and actions yield unforeseen consequences, Dewey recommends that institutions maintain a provisional stance toward policy. Implicit from Dewey's writings is the idea that public officials should have a problem-oriented disposition that questions assumptions, treats policy solutions as provisional and readjusts in light of feedback. Deliberation encourages officials to interpret policy mandates in broad terms, respond pragmatically to challenges and subject their decisions to revision.²⁷ Along with formal, written channels, deliberation supports informal communication. Norms for information exchange support oral and written accounts, colloquial knowledge and multiple forms of evidence.

Mechanism 1: Bureaucratic Understandings and Behaviors

Turning to the first mechanism behind implementation, legalistic and deliberative bureaucracies stimulate divergent bureaucratic understandings, which lead state officials to interpret and enact policy rules in very different ways (see Figure 2.4). Legalistic bureaucracy motivates officials to adopt a rule-based interpretation of policy, giving precedence to written rules and procedures. Bureaucrats will seek clarity in determining policy problems and adhere to hierarchical prescriptions. They will tend to favor narrow, well-defined goals that can be standardized and measured, working to minimize the vagueness of policy rules. Illustrating the behavioral dynamics of legalism, a study of microfinance loan officers in Mexico finds that agents adhering to the "letter of the law" understand policies as binding constraints that narrow the set of prescribed actions (Canales 2011). When differences arise, they will tend to search for (preferably written) rules and clarifications from supervisory officials before crafting a response. Doing so allows bureaucracy to assign responsibility and "forge subsequent links in the causal chain" of implementation (Pressman and Wildavsky 1984, xxiii). To be sure, the multiplicity and ambiguity of policy rules leaves room for frontline discretion. Officials must select which rule to prioritize and what standards to apply when monitoring services. However, they will tend to avoid actions that go beyond written policy stipulations.

²⁷ Ansell associates pragmatism with "evolutionary learning" processes, which generate "problem-solving capacity over time through continuous inquiry, reflection, deliberation and experimentation" (2011, 5).

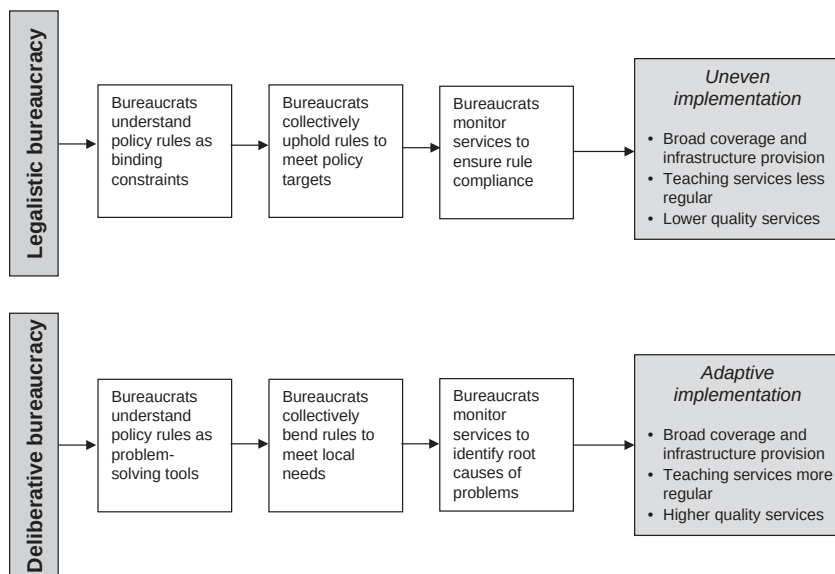


FIGURE 2.4 Mechanism 1: Bureaucratic understandings and behaviors

The commitment to a narrow interpretation of policy rules, I argue, enables officials to undertake codifiable tasks effectively. In the primary education sphere, these tasks include the enrollment of students, and provision of infrastructure and other schooling inputs. Legalism motivates officials to work collectively toward well-defined goals, while the preservation of hierarchical boundaries enables them to collectively withstand political pressures, leading to more consistent delivery of inputs. Legalistic bureaucracy is thus expected to generate broad coverage of the school as well as provision of school infrastructure.²⁸ Local monitoring practices will tend to support input provision as well. Frontline officials are likely to conduct school monitoring as an audit, inspecting for compliance with rules, which aids in the achievement of measurable policy targets, such as infrastructure and teaching inputs.²⁹ On the other hand, I expect legalistic bureaucracy to falter when undertaking intensive or complex tasks. The latter set of tasks call for fine-grained judgments and intensive coordination across organizational boundaries. At the higher

²⁸ Sinha (2010) shows how tight adherence to bureaucratic rules facilitated school enrollments in Gujarat.

²⁹ Honig (2018, 22–24) elaborates on the conditions when top-down monitoring works in foreign aid interventions.

levels of bureaucracy, the search for consistency through the application of common rules can lead state planners to overlook important differences in the local context of primary schooling. Intensive tasks, such as remedial education and specialized services for disadvantaged students, require officials from across administrative sub-divisions to pool information and resources. The observance of hierarchical boundaries and internal procedures can limit coordination between officials in different agencies.³⁰

At the school level, inspections aimed at ensuring compliance help achieve measurable targets and may improve teacher attendance.³¹ However, the motivation to secure compliance can also lead officials to downplay root causes behind low quality services. Honig and Pritchett (2019) suggest the limits of audit-based monitoring in education, which generates “thin accountability” within school systems. Downstream pressures to demonstrate compliance can interfere with the provision of academic support, leading to the demotivation of teachers. A parallel set of expectations about legalistic bureaucracy is suggested by research on regulation, which identifies the possibilities and limits of audit-based monitoring practices.³² At the extreme, frontline officials will tend to reduce complex tasks to “compliance with formal policies and procedures,” counteracting policies designed to enhance the quality of services (Andrews, Pritchett and Woolcock 2017, 32). In sum, legalistic bureaucracy generates a pattern of uneven policy implementation, marked by broad school coverage and input provision, but with significant shortfalls in the quality of services.

A very different dynamic is set in motion by deliberative bureaucracy. Deliberation leads officials to hold a flexible interpretation of policy and work collectively to solve problems rather than adhere to written rules. When confronted with competing policy interpretations, frontline agents will tend to discuss alternative viewpoints with senior officials and apply

³⁰ As Chibber (2002) finds, bureaucratic adherence to administrative boundaries stifled interagency coordination around economic planning in India.

³¹ Experimental evidence from India suggests the benefits of school inspections for addressing teacher absenteeism (Duflo, Hanna and Ryan 2012; Muralidharan et al. 2017).

³² Bardach and Kagan (1982) argue that auditing can lead to excessive attention to rule compliance. Ayres and Braithwaite (1995) propose an alternative model of “responsive regulation,” which allows for flexibility and negotiation of standards. Alternative approaches have been studied in the context of enforcing labor standards in developing countries, suggesting the advantages of flexibility and joint problem-solving by auditors and factories (Piore and Schrank 2008; Locke, Amengual and Mangla 2009).

collective judgment to negotiate a course of action. Through routine discussions, senior officials engage the perspectives of frontline agents, and in doing so, gain appreciation for what Scott calls *mētis*, “knowledge that can only come from practical experience” (1998, 6). As they learn about the practical realities of service delivery, state planners reinterpret policies in response to local needs. Likewise, they motivate frontline agents to think, plan and act beyond written rules, enabling them “to make policy in the course of implementation” (Moffitt 2014, 7). Frontline agents will tend to embrace policy ambiguities and modify rules in response to practical conditions since they can adapt policies to suit local contextual differences and better the needs of disadvantaged communities.

I argue that deliberative bureaucracy leads to more effective implementation of education services. The understanding of policy as a problem-solving tool allows frontline officials to perform a wider range of administrative tasks well. Along with student enrollment and infrastructure provision, deliberative bureaucracy outperforms legalistic bureaucracy on intensive and complex tasks. State planners will tend to discuss policy problems with colleagues in other offices and geographic locations, enabling more robust coordination. The participation of frontline officials in routine discussions increases the diversity of viewpoints, improving the bureaucracy’s ability to address complex problems.³³ For the complex task of monitoring, school administrators will tend to work jointly with teachers to identify underlying problems affecting services. Rather than monitoring for strict compliance with rules, deliberative bureaucracy encourages frontline administrators to engage in what Sabel (1994) has called “learning by monitoring,” a mode of continual discussion and collective problem-solving that maintains interpretive flexibility over the rules.³⁴ Frontline officials will tend to experience greater institutional support for local experimentation, enabling them to adapt policies according to local needs.

Notwithstanding its advantages, deliberative bureaucracy also has downsides, which may be more apparent in settings of low administrative capacity. Deliberation places considerable demands on officials to maintain regular communication. In an ideal scenario, street-level bureaucrats probe one another’s decision-making and instill peer-based discipline in

³³ On the epistemic benefits of diversity for decision-making in organizations, see Page (2008).

³⁴ Noonan, Sabel and Simon (2009) apply the “learning by monitoring” framework to child welfare policies in the United States.

furtherance of agency goals (Zacka 2017; Møller 2021). However, this presumes the presence of professional norms and competencies among frontline workers, which are in shorter supply in developing countries such as India (Das, Hammer and Leonard 2008; Ramachandran et al. 2018).³⁵ Frontline officials would still need to justify their decisions with colleagues, but the absence of professional competencies raises the risk of deliberation becoming untethered from programmatic policy ends. Where horizontal mechanisms of professional accountability are weak, vertical communication between supervisory officials and frontline agents becomes even more critical for maintaining deliberation's constructive focus. Through vertical communication, senior officials help steer problem-solving toward programmatic ends, which sets constraints on local rule-bending. The need for vertical communication also suggests that deliberative bureaucracy can lead to delays in collective decision-making. The intensive communication requirements suggest, furthermore, that deliberation is likely to be more effective when agencies are smaller in size, enabling more frequent interaction.³⁶ Where administrative personnel are in short supply and have to manage large jurisdictions, legalistic bureaucracy has the advantage of undertaking codifiable tasks with greater efficiency. On the whole, however, these downsides of deliberation are counteracted by the gains it provides in terms of facilitating the execution of complex tasks.

Mechanism 2: Societal Feedback

Legalistic and deliberative bureaucratic norms stimulate varied mechanisms of societal feedback, in turn shaping citizen expectations and collective strategies in different ways, which impacts routine functioning and quality of services. My theorization of societal feedback draws on two separate branches of scholarship connecting state institutions with societal participation. First, the policy feedback literature directs us to the downstream political dynamics that social policies induce (Pierson 1993). Depending on their design, policies can shape citizen interests and political mobilization in different ways. Studies of the welfare state in the United States and Europe find that different social policy regimes have

³⁵ Studies of bureaucratic deliberation in Brazil's labor inspectorate (Pires 2011) and prosecutor's office (Coslovsky 2011) likewise identify the importance of professional norms and competencies.

³⁶ Karpowitz and Raphael (2014) suggest the advantages of deliberation within smaller-sized groups.

varied effects on civic engagement and trust in the state (Mettler 2002; Campbell 2005; Kumlin and Rothstein 2005).³⁷ Policy feedback research examining local state–society interactions demonstrates further how everyday engagement with school systems, the police and social welfare agencies shapes citizens’ perceptions of the state and their own standing in relation to it (Soss 1999; Lawless and Fox 2001; Lerman and Weaver 2014). Related work on trust in government investigates how citizens’ experiences with public agencies influence their expectations about institutional fairness and legitimacy, which in turn conditions their willingness to comply with laws (Tyler 1990; Soss 2005; Levi and Sacks 2009).

Another line of research examines participatory and deliberative institutions designed to harness citizen input into public policy. Participatory governance has been studied in a multitude of contexts, from community policing in Chicago, Illinois, to participatory budgeting in Porto Alegre, Brazil, to village assemblies in India (Fung and Wright 2003; Fung 2006; Baiocchi, Heller and Silva 2011; Karpowitz and Raphael 2014; Sanyal and Rao 2018). This work is largely optimistic about what societal participation can achieve. At the same time, research from developing countries underscores the difficulties of securing substantive participation from marginalized citizens, especially in light of power imbalances in society (Mansuri and Rao 2013; Hickey, Sen and Bukenya 2015; Fox 2020). Much depends on how participatory institutions address the practical roadblocks to societal engagement in service delivery.

Combining the insights of these literatures, I argue that the *same* policy programs and formal institutions of service delivery can induce very *different* societal responses during implementation depending on the bureaucratic norms that guide local state–society interactions. Figure 2.5 illustrates how legalistic and deliberative norms of bureaucracy each stimulates divergent forms of societal feedback. Maintaining a *protective* stance toward society, officials in a legalistic bureaucracy are likely to seek input from state-sanctioned agencies, avoiding informal associations (in Indian administrative parlance, “unregistered societies”) that lack state recognition. They will tend to use rule-based protocols, such as administrative grievance procedures, to record citizen complaints and resolve conflicts. For example, India’s universal primary education program assigns a prominent role to Village Education Committees (VECs),

³⁷ Also see the important study by MacLean (2010) of policy feedback and citizenship practices in Africa.

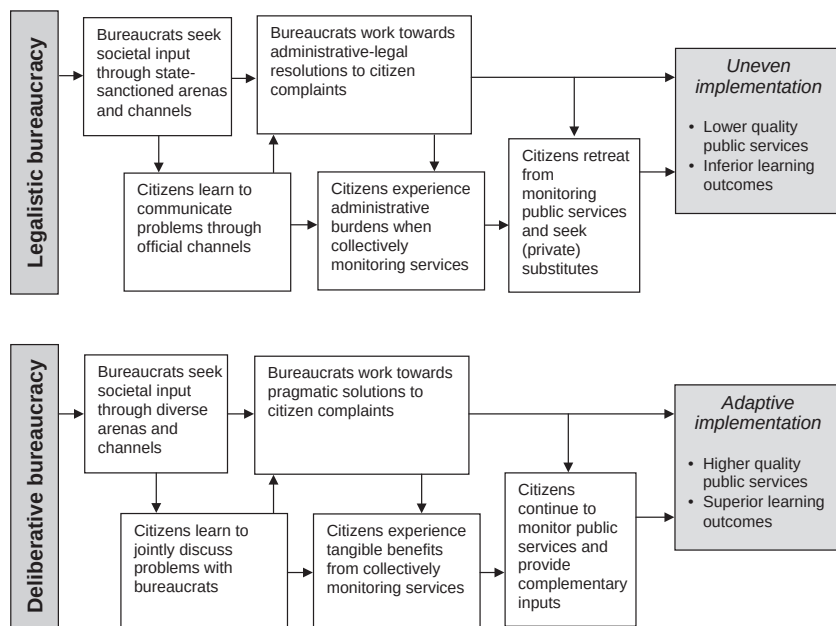


FIGURE 2.5 Mechanism 2: Societal feedback

comprising parents, teachers and village officials, to monitor government schools and lodge complaints with local administration.³⁸

I argue that legalistic bureaucracy helps stimulate societal monitoring of services through official channels, but these channels also narrow the scope of participation and amplify administrative burdens for marginalized groups. Administrative burdens, Herd and Moynihan (2018) suggest, include the economic costs of learning how to monitor and comply with rules, as well as psychological frustrations and stigmas associated with cumbersome administrative processes. In India, Gupta (2012) shows how bureaucratic “red tape,” the myriad rules and procedures of district administration, exacts a toll on marginalized groups when they seek services.³⁹ Beyond economic and psychological costs, marginalized groups can face backlash for registering official complaints against service providers. In rural India, women and lower castes risk violence

³⁸ Studies show that VECs have produced mixed effects on service delivery and education outcomes (Drèze and Kingdon 2001; Banerjee et al. 2007).

³⁹ Also see Goetz and Jenkins (2005) and Auyero (2011).

and ostracism for speaking out against powerful groups.⁴⁰ In the course of my field research, Dalit parents apprised me of these risks, including physical harm to their children, if they registered complaints against (often upper-caste) schoolteachers.

In view of the burdens and risks involved, marginalized groups will tend to follow through with complaints when they can expect concrete benefits and support from the state. Yet, the official channels of grievance redressal are often ill-suited for extending such support. As Goetz and Jenkins point out, “[p]rocedures for filing complaints about poor quality services may be insensitive to the special conditions facing the poor, or access points to officialdom too remote from the sites of injustice that require remedy” (2005, 48).⁴¹ Local elites are often better placed to use these channels, given their political connections, resources and confidence in navigating public administration.⁴² Furthermore, when applied to complex service-based tasks such as teaching, formal grievance procedures generate uncertainties, since it is inherently more difficult to assign responsibility for underperformance in these tasks.⁴³ These challenges get magnified in settings of low state capacity, given the likelihood of procedural delays and elite interference. Yet, similar dynamics are observed in high capacity, “strong rule of law” environments, such as the United States. Based on a study of welfare programs in Chicago, Illinois, Brodtkin (1997) concludes, “[l]egal remedies offer only limited accountability, in part, because problems occurring in the ‘gray areas’ of quality and agency inaction are hard to challenge and because lawsuits are extremely difficult to pursue, especially for the poor” (1997, 25).⁴⁴

In sum, I expect legalistic bureaucracy to stimulate societal monitoring of public services, but participation will tend to be episodic and fragmented. Citizens learn to communicate problems through official channels and grievance procedures, but they are likely to experience administrative burdens. Over time, these burdens dampen their expectations of what participation can accomplish. Some citizens may retreat from monitoring services. Households with the economic means will be

⁴⁰ Brulé (2020, 38–46) analyzes societal backlash in the context of enforcing women’s property rights in India.

⁴¹ For an illustration of these dynamics in Mexico, see Fox (2007).

⁴² For example, Krishna (2011) finds that wealthier residents in rural India are more likely to utilize official channels, such as elected village councils, to access state services.

⁴³ During fieldwork, teachers often remarked that parental neglect was to blame for poor quality education.

⁴⁴ Also see the large literature on formal grievance procedures within firms.

more inclined to seek private substitutes, weakening the collective voice around public services. Consequently, I expect primary education services to be less functional and of lower quality.

To be clear, I do not claim that legalistic bureaucracy leads citizens to withdraw entirely from state services. Given the need for primary education and other services, few can afford to do so. Nor do I suggest that societal feedback under legalistic bureaucracy has no constructive effect on service delivery. The presence of official channels helps stimulate citizens' demands and grievances, which can, in some instances, lead to improvements in education services. All else equal, a legalistic bureaucracy that has institutional avenues for societal input is expected to yield superior outcomes for education compared to an agency closed off from society.⁴⁵ Legalistic bureaucracy may also induce the search for informal remedies. Some citizens may try to circumnavigate administrative rules, seeking political intermediaries and informal networks to influence bureaucratic decisions.⁴⁶ Others may publicly complain, using "rude accountability" to pressure service providers (Hossain 2010). Complaining is a political act, an expression of citizenship valuable in itself, separate from the outcomes it produces.⁴⁷ However, for the least advantaged, the tangible results of complaining also matter. For services like primary education, which involve repeated interactions between households and service providers, complaining is at best a partial remedy.

Societal feedback under a deliberative bureaucracy unfolds differently. The problem-based orientation of officials leads them to draw input from a more diverse set of societal actors. Also, arenas of participation will tend to be more inclusive as well, since officials work with state-sanctioned groups as well as informal associations, permitting a wider set of citizen perspectives to enter discussions. Through their participation, citizens learn how to address service delivery problems jointly with state actors, improving the chances of identifying locally appropriate solutions. Instead of administrative grievance procedures, state officials tend to manage conflicts by promoting dialogue between contesting parties. For instance, they will urge teachers and parents to discuss and resolve tensions

⁴⁵ My conception of legalistic bureaucracy can thus be distinguished from the notion of a "closed" Weberian bureaucracy, insulated completely from society (Dahlström and Lapuente 2017, 54–59).

⁴⁶ Several studies suggest the importance of political brokers in India, for example, Manor (2000), Krishna (2003), Jha, Rao and Woolcock (2007) and Auerbach (2019).

⁴⁷ On the constructive politics of complaining, see also Corbridge (2007) and Kruks-Wisner (2021).

pragmatically. By urging citizens to deliberate with service providers, state officials help steer societal participation toward productive ends. Citizens will tend to experience tangible benefits from participation, which in turn would encourage them to continue monitoring services and provide complementary inputs that help achieve higher quality education outcomes. For example, Collins (2021) finds that deliberative school board meetings in the United States improve parental trust in local officials and their willingness to engage in future meetings. Similar dynamics are found in research on participatory governance institutions in developing countries. In their study of village assemblies (*gram sabhas*) in southern India, Rao and Sanyal (2018) observe that state officials effectively “school citizens” on how to participate and in public fora. Likewise, Baiocchi (2003) demonstrates how state-sponsored assemblies for participatory budgeting in Porto Alegre, Brazil, enable citizens to communicate needs as “public problems” and work toward collective answers.

Yet, participation in public fora does not guarantee that citizens are fully heard or that their demands for better services are met. Deliberative spaces can also marginalize the voices of women, lower castes and ethnic minorities (Heller and Rao 2015; Parthasarathy, Rao and Palaniswamy 2019). The adverse conditions of social inequality, Appadurai (2015, 69) notes, “have produced many deliberative failures and disappointments.” He also suggests that the practice of deliberation can build on itself incrementally to strengthen the collective voice of marginalized groups, unleashing a “chain of participation.” I argue that deliberative bureaucracy is a crucial link in the chain of participation, which helps strengthen citizen voice in service delivery. By actively encouraging marginalized citizens to voice concerns, state officials make policy problems *public* (Moffitt 2014). The arenas of participation may include official settings such as town halls and village assemblies, but importantly, informal spaces as well, such as impromptu meetings between residents and frontline service providers. Through deliberation, marginalized citizens learn to communicate material needs and aspirations, revealing their “hidden transcripts” of inequality (Scott 1990). When grievances are aired collectively, face-to-face in public, privileged groups are subject to the constraints of public reason and fairness, which can counteract elite domination. To illustrate, in their study of development projects in rural Indonesia, Gibson and Woolcock (2008) show how public discussion helps dislodge unequal power relations, particularly when state officials make deliberative spaces available to women, manual laborers and other subordinate groups.

Deliberative bureaucracy can also present downsides for societal participation, which should be noted. Encouraging marginalized groups to monitor and publicly voice complaints about public services can spark social conflict and elite backlash. In these scenarios, street-level bureaucrats may be needed to mediate conflicts, presenting a source of countervailing pressure, which signals the state's support for subordinate groups.⁴⁸ Alternatively, the bureaucracy's incorporation of informal associations and unofficial spaces may inadvertently dampen the critical edge of deliberation (Baccaro and Papadakis 2009). State control of deliberative spaces may also lead to greater dependency or cooptation of non-state actors (Brysk 2000). While recognizing these risks, I expect deliberative bureaucracy to strengthen societal monitoring of services. Through public discussions, supported by frontline officials, citizens learn how to solve problems and experience tangible benefits from participation. They will be more inclined to allocate time and resources toward monitoring services and make collective investments that complement governmental inputs, yielding services of higher quality and superior education outcomes.

My theoretical framework has fleshed out the ideal types of bureaucracy, namely, legalistic and deliberative, as well as the mechanisms through which they produce variations in the implementation of public services. Section 2.4 theorizes the political origins of bureaucratic norms. Before proceeding with that task, some clarifications are necessary. First, while I have drawn sharp distinctions between the two sets of bureaucratic norms, my theory should not be read as arguing for a simple binary. Legalistic and deliberative bureaucracies are better understood as being located on a continuum, with other variations of bureaucracy operating between them. Their many important differences aside, moreover, the two models of bureaucracy also share common properties. Deliberative bureaucracy must pay some obeisance to rules and hierarchies, without which it could scarcely function as a bureaucracy.⁴⁹ Likewise, legalistic bureaucracy cannot operate without some discussion between officials over what the rules are and how they ought to be followed.

Second, one should not expect perfect resemblance between my theoretical ideal types and the actual bureaucracies studied in this book.

⁴⁸ For example, Heller, Harilal and Chaudhuri (2007) show how state officials in Kerala supported the inclusion of women and lower castes in village council decision-making.

⁴⁹ My conception of deliberative bureaucracy can be contrasted with “network” or “open” governance, ideas that challenge conventional bureaucratic authority (Provan and Kenis 2008; Kornberger et al. 2017).

The typology identifies the central tendencies of each form of bureaucracy and the channels whereby they impact policy implementation. Typologies are designed to accentuate certain theoretical features, which aids in the comparison of empirical cases (Giddens 1973, 141–143). While such abstraction can be useful, the temptation to overstate resemblances between abstract models and observed behaviors should be resisted. Finally, the theoretical argument suggests the advantages of deliberative bureaucracy for implementing public services, but I should emphasize that deliberation need not always lead to better implementation. As noted earlier, there are downsides to deliberative bureaucracy, such as the human resource intensity and time it requires for decision-making. Given resource constraints, legalistic bureaucracy is theorized to undertake codifiable tasks effectively and perform well on some intensive tasks. However, as the complexity of tasks increases, I expect deliberative bureaucracy to perform better, producing services of higher quality.

2.4 THE POLITICAL ORIGINS OF BUREAUCRATIC NORMS

Having theorized the impact of bureaucratic norms, this section turns to the prior set of questions regarding the origins and propagation of bureaucratic norms. The historical emergence of bureaucratic norms has theoretical significance for a few reasons. Bureaucratic norms are difficult to establish, and like other features of public institutions, they can be resistant to change (Pierson 2005). Bureaucratic norms can also have unintended consequences, for example, encouraging vested interests to form around policies, thus limiting the control of state actors (Moe 2015). Given the costs of establishing bureaucratic norms, governing elites are likely to invest in them only under exceptional circumstances. The literature on state-building in Europe associates modern bureaucracy's development with the extraordinary conditions of war (Tilly 1992; Ertman 1997). The threat of military conflict pushed Europe's governing elites to create bureaucratic machineries capable of ordering society and amassing fiscal resources. Studies of state-building in developing countries suggest alternative paths and historical contingencies, including the colonial legacies of institutions (Acemoglu, Johnson and Robinson 2001; Kohli 2004, 2019).

Existing perspectives on state-building help illuminate the Indian case, but only partially so. As I argue in Chapter 4, colonial administration was crucial to the genesis of legalistic bureaucracy in UP. Kohli (2019)

observes that the British Raj promulgated the idea of a “law and order” state in India, whose chief purpose was to preserve public order and further the crown’s economic exploits. Legalistic bureaucracy was also seen as an institutional bulwark against Hindu–Muslim communal violence and caste conflict. Acknowledging India’s colonial inheritance, an account is needed of how legalistic bureaucracy persisted after independence and evolved alongside democratic politics and clientelistic subversion of the state. Why other Indian states under British colonial rule, such as HP, diverged from legalism to forge a deliberative bureaucracy also merits explanation.

My argument for the origins and propagation of bureaucratic norms at the subnational state level highlights the strategic objectives of governing elites during historical periods of state-building and the relationships that evolved between them and bureaucratic leadership. Subnational state elites have a vision for the state, but their state-building strategies are not deployed in an institutional vacuum. In India’s federal system, the balance of power between the central and subnational state governments created opportunities and constraints for regional politicians. Where the subnational state was politically powerful in relation to the central government, state leaders could influence national politics and public administration. Politicians in these states sought to preserve their power and directed officials to maintain order and stability, a strategy best achieved by promoting legalism. Bureaucratic leadership in these states learned to embrace legalism as well, as it helped enlarge their own authority. Despite a common interest in maintaining legalism, the relationships that emerged were conflictual, since bureaucrats and regional politicians had different objectives for the state. At cross-purposes, each sought to limit the other’s influence over public administration, which reinforced hierarchical rule-following.

By contrast, where the subnational state was politically marginal vis-à-vis the central government, subnational political leaders were more constrained. Politicians in such states had strong incentives to cooperate with bureaucrats to identify collective goals and find common strategies for state-building. By joining hands, bureaucrats and politicians strengthened their collective bargaining position with central agencies, which improved the chances of obtaining resources and agreeable terms from the central government. Bureaucrats learned to work intensively with politicians for state-building, which reinforced their interdependencies. The collective behavior of governing elites sent a strong signal to subordinate officials, who were routinely called upon to communicate

local concerns across hierarchical boundaries and identify solutions with their peers. Deliberation was thus reinforced by the cooperative relationship between political leaders and bureaucrats.

My argument for the emergence and consolidation of bureaucratic norms builds on scholarship on the politics of state formation. Challenging the traditional emphasis on economic modernization and external threats, studies have shown the importance of domestic elite politics for state-building (Geddes 1994; Slater 2010; Soifer 2015). Elite decisions can have far-reaching institutional consequences, especially in critical moments of state formation, when the rules of the game are more elastic. Nonetheless, as Slater (2010) argues, the choices available to elites are contingent on prior historical circumstances, which in the case of Southeast Asia, he finds, depended on the threat posed by subaltern groups. The evidence from northern India points to an alternative set of mechanisms. The development of bureaucratic norms was driven not by subaltern threats to security, but the subnational state's political and fiscal relationship to the central government. This portion of my theoretical argument takes a multilevel institutional perspective on the state-building process (Sheingate 2014). In particular, I build on the work of Sinha (2005), who demonstrates that distinct subnational models of development in India arose based on the strategic responses of state governments to central government policy rules. Likewise, I argue that the strategic objectives of regional politicians depended on the need for external resources and political support from the central government. These conditions help explain why, in the absence of external threats or subaltern social movements, politicians in HP cooperated with bureaucrats, and together they supported deliberation inside the state. Yet, the persistence of bureaucratic norms does not spring mechanically from elite decisions, but depends on the dynamic interactions between subnational state politicians and bureaucrats. In UP, where politicians routinely attempted to subvert policy rules for political purposes, bureaucrats worked to resist subversion by appealing to rules established by the central government, thereby maintaining bureaucratic authority.

2.5 VARIETIES OF BUREAUCRACY

My theoretical argument underscores bureaucracy's role in promoting social welfare and human development. It brings developmental state scholarship into conversation with research on public administration and policy feedback. Studies of the developmental state have shown how

high-powered, Weberian bureaucracies, exemplified by MITI in Japan, supported industrial transformation and growth in East Asia (Johnson 1982). Along with autonomy, Evans (1995) demonstrates that developmental states are embedded in networks with industrial capitalists, facilitating robust coordination around policy goals. More recently, the developmental state's purview has been expanded to incorporate education, health and other human capability-enhancing services (Evans and Heller 2015).

My argument draws inspiration from this research, though it can be distinguished from existing approaches in several ways. First, the theorization of bureaucratic norms calls attention to *informal* features of the state, which are relatively underexplored. Developmental state scholarship pays homage to the Weberian state, a composite of bureaucratic structures and rational-legal norms, which together ensure administrative coherence and commitment (Evans 1995; Lange 2005). While much scholarly effort has gone into unpacking the formal structures of Weberianness, the informal norms operating inside bureaucracies have gained less attention.⁵⁰ There may be good reasons for this. Formal Weberian structures, such as meritocratic recruitment, mark critical differences between predatory and developmental states (Evans 1989). These structures are associated with economic growth, a reduction in poverty and less corruption (Evans and Rauch 1999; Rauch and Evans 2000; Henderson et al. 2007; Dahlström and Lapuente 2017). Where patronage is prevalent, Weberian structures offer safeguards against whimsical and personalistic rule, protecting against state failure (Kohli 2004; Grindle 2012). Moreover, bureaucratic norms can be challenging to study and quantify (like other informal institutions), making cross-national comparisons more difficult (Helmke and Levitsky 2004, 733–734).

Yet, formal Weberian structures are insufficient for encouraging high bureaucratic performance on the complex tasks of public service delivery. Bureaucratic norms, and other qualitative features of bureaucracy, are critical in this regard and can help us understand “intermediate” cases, such as India. Hardly a failed state, India is governed by a complicated admixture of formal (Weberian) and informal (non-Weberian) elements that eludes easy categorization (e.g., Fukuyama 2013, 362–363).⁵¹ To

⁵⁰ It is noteworthy that Haggard's (2018) comprehensive review of empirical research on developmental states discusses formal procedural aspects of Weberian bureaucracy but makes no mention of bureaucratic norms, culture or *esprit de corps*.

⁵¹ The presence of formal Weberian structures may also give the false impression of bureaucratic coherence (Pritchett and Woolcock 2004).

make sense of such cases, we need to penetrate “beneath the veneer of formal institutions and apparently clear goals, down to the relational substratum of people’s actual lives” (Padgett and Ansell 1993, 1310). As I elaborate in subsequent empirical chapters, India’s education bureaucracies may be described as semi-Weberian, with meritocratic selection and civil service rules, especially at the higher levels, but pervasive politicization on the front lines. Pritchett (2009) describes this duality, of highly capable elite agencies detached from the “limbs” of street-level bureaucracy as a “flailing state.” This depiction of Indian bureaucracy raises questions. Why, for one, does a flailing state succeed in some tasks but fail in others (Kapur 2020)? How does the same formal bureaucratic structure yield such vast regional variations in the implementation of primary schooling?

My framework addresses these puzzles by penetrating the bureaucratic edifice, to reveal the ethos of bureaucracy. My approach is further distinct in that it integrates *street-level* bureaucracy into the theoretical fold (Lipsky 1980). Research on street-level bureaucracy, including recent work from developing countries, suggests that norms and other informal features of organization are as important for implementation as formal Weberian structures (Schrank 2009; Piore 2011; Canales 2014).⁵² My argument points to the divergent normative commitments that motivate frontline officials and guide their behavior around administrative tasks. While primary education is ultimately a local-level service, I suggest that frontline officials respond to norms established upstream by higher-level officials. The empirical analysis in Chapters 4–7 is designed to mirror India’s multilevel governance structure, examining the interrelationships between tiers of the state (Sinha 2005). Legalistic bureaucracy encourages a narrow interpretation of policy rules, enabling street-level bureaucrats to collectively resist political interferences, but at the same time weakening their ability to monitor routine services for quality.⁵³ Deliberative bureaucracy, meanwhile, encourages street-level bureaucrats to apply rules in a flexible manner, based on the collective discussion of problems across tiers of the state. My theory thus answers Evans’ (2015) call for “bringing deliberation into the developmental state.”

⁵² A related set of findings emerge from research on experimental and pragmatist governance (Sabel and Zeitlin 2008; Ansell 2011).

⁵³ This portion of my argument resonates with Chibber (2002, 2003), who suggests the limitations of “bureaucratic-rationality” in India’s elite economic agencies.

I recognize, however, that deliberative bureaucracy is not a panacea. Nor does it automatically trigger substantive participation by society. My argument about societal feedback acknowledges the real difficulties of sustaining societal participation around public services, especially among the least advantaged. Drawing on Evans' (1995, 1996) insight that state embeddedness in society is vital for implementation, the mechanism of societal feedback goes into the mundane politics of coproduction. I foreground the obstacles that marginalized groups experience when attempting to monitor services, highlighting how the local state influences citizen participation. Instead of depending on preexisting village networks, embeddedness in this context requires street-level bureaucrats to actively build and maintain connections with marginalized groups. Legalistic bureaucracy helps stimulate community monitoring of services, but the administrative burdens it places on marginalized citizens weakens their participation over time. Deliberative bureaucracy offers more capacious openings for citizens to discuss and communicate collective grievances to the state, which helps to sustain their participation.

The societal feedback mechanism that I have theorized can be contrasted with previous accounts, including Tsai's (2007) argument about state embeddedness and public goods provision in rural China.⁵⁴ Tsai demonstrates that when local officials are embedded in encompassing and solidaristic village associations, they submit to community pressures to provide schools and roads. Meanwhile, rural society in northern India is more unequal and socially divided, albeit with important regional variations. Even where village social ties are relatively encompassing, as I observe in the case of women's associations in the Himalayan region, registering claims with the local state remains a struggle. Bureaucratic norms are crucial within such contexts for sustaining collective action around governmental services, as I demonstrate through the comparison between HP and Uttarakhand. My argument about societal feedback also diverges from Heller's (1999) account of state embeddedness in Kerala, which was built on decades of social movement politics, led by lower castes and classes, followed by robust civil society networks. No comparable movements have obtained in the Hindi belt.⁵⁵ And yet, I find that norms of deliberation, established through the historical politics of state-building,

⁵⁴ Whereas Tsai examines the puzzle of state accountability in democracy's absence, my argument is concerned with the puzzle of varying state *capacity* in settings of weak institutions.

⁵⁵ See Ahuja's (2019) subnational comparative study of Dalit social movements across India.

condition how citizens pursue and engage with the local state. In the absence of social movements, rural women, Dalits and other subaltern groups in northern India face an uphill battle when seeking state assistance. On the long arc of human development, Heller's insight, about the need for social movement politics to underwrite bureaucratic initiatives in education and health, may well be correct. Nevertheless, I submit that bureaucracy can still make an independent and significant contribution toward the implementation of public services.⁵⁶ In that regard, my theory offers some hope for human development in places like the Hindi belt, where inequalities are entrenched and subaltern social movements are limited in their reach.

2.6 SCOPE CONDITIONS

This section clarifies the scope conditions for my theory. First, my theory applies to settings where a modicum of institutional stability and resources obtain, a condition that is satisfied by the majority of the world's countries. However, this condition eliminates failed states or those on the brink of institutional collapse. In a failed state, instability and interne-cine conflict renders it impossible for public officials to formulate policy goals, let alone implement long-term projects such as mass education. Likewise, where no administrative resources exist, implementation is very unlikely. Second, I anticipate that bureaucratic norms will have the greatest influence over implementation where formal bureaucratic institutions are comparatively weak and vulnerable to societal interferences (Helmke and Levitsky 2004). In strong institutional environments, with more autonomous Weberian bureaucracies, informal relations and societal influence over rules are less likely (Dahlström and Lapuente 2017). Where bureaucracy lacks Weberian autonomy, informal norms and relationships can play a larger role, widening the scope for bureaucratic norms to drive implementation. This second condition eliminates the few countries and political subdivisions in the world whose bureaucracies truly approximate the Weberian ideal, such as Denmark. My theory can, however, still apply to advanced economies where bureaucracy is less Weberian.⁵⁷

⁵⁶ Chapter 8 revisits the Kerala case from the lens of my theory, suggesting the importance of the historical state-building process in the context of social movements and private provisioning of education.

⁵⁷ King and Lieberman (2009) describe how bureaucracy in the United States departs from the Weberian ideal.

Chapter 8 extends my arguments beyond developing countries, through a comparison of education in Finland and France, offering evidence (albeit suggestive) of the importance of bureaucratic norms within relatively strong institutional environments.

Third, although the study's policy domain is primary education, I expect my theory to apply to a wide range of policy areas in which bureaucrats have discretion, make frequent contact with societal groups and undertake complex "transaction-intensive" tasks (Andrews, Pritchett and Woolcock 2017). Along with higher education and vocational training, these include social services such as health and nutrition, housing, sanitation, employment and anti-poverty programs. My theory can also apply to the state's internal security and regulatory functions, such as policing, labor regulation and natural resource management. Beyond public bureaucracies, my theory is portable to nongovernmental organizations and private agencies, which are important providers of social services in many countries (Cammett and MacLean 2014). Likewise, it may apply to international aid agencies and hybrid organizations, such as those involved in microfinance and other social impact work⁵⁸ These agencies often have multiple objectives and complex relationships with government institutions, creating the need for norms to resolve conflicts. Lastly, I expect my theory to apply to the implementation of institutional reforms, such as democratic decentralization, participatory government and community-based development (Fung and Wright 2001; Mansuri and Rao 2004). These various policy contexts also differ from primary education in important ways, and the theory's suitability will therefore depend on the nature of administrative tasks at hand. With appropriate modifications, I expect the theory to have purchase across these different fields.

Fourth, the mechanism of societal feedback operates on the presumption that society has basic freedoms to organize collectively and express demands on the state. Legalistic and deliberative bureaucracies each stimulate different modes of societal feedback. Deliberative bureaucracy is expected to enhance the quality of services by sustaining more inclusive forms of community monitoring. For either mode of societal feedback to operate, the political freedom to associate and express disagreement is a necessary condition. These condition would appear to obtain most

⁵⁸ Studies from across these domains identify the importance of organizational norms. See, for example, Piore and Schrank (2008), Honig (2018), Canales (2011) and Battilana and Dorado (2010).

securely under democratic government. Deliberation in particular, as a normative ideal and political practice, is closely tied to conceptions of democracy. However, democracy, in its minimal form, need not inspire substantive citizen engagement in public services. Moreover, deliberative governance can exist in non-democracies as well, as research on East Asian developmental states has shown.⁵⁹ Chapter 8 considers my argument's applicability to China, a setting with non-democratic institutions that have some deliberative features (He and Warren 2011). I suggest that deliberative bureaucracy can, within limits, support public service delivery in a non-democratic context, provided that citizens have room to voice collective demands.

Bearing in mind that different policies induce different forms of politics (Pierson 1993), a closing thought on the politics of primary education is warranted. Political scientists treat education as a valence issue, something that voters normally want and politicians often declare a priority (Gift and Wibbels 2014). If the public favors an expansive education policy, this arguably makes it easier for bureaucracy to deliberate with citizens during service delivery. Compared to other redistributive programs, such as land reforms, which visibly penalize economic elites, primary education may occasion less societal resistance and conflict. That said, education is among the most fiscally progressive social policies, especially when resources are directed at the primary level of schooling (Hanushek 2002). Assumptions about a political consensus for universal primary education are questionable. In developing countries, politicians wax eloquent about their commitment to mass education, while public spending exhibits a fiscally regressive "tertiary tilt" favoring elite higher education (Kosack 2012). In India, teachers' unions show support for expanding education but resist proposals requiring them to work in distant, rural schools (Kingdon and Muzammil 2012). Turning to European history, education was among "the most fiercely debated of all institutions of the nineteenth century" (Ansell and Lindvall 2021, 146). Europe's experience of educational expansion was braided with conflicts over, *inter alia*, public versus private provision, religious versus secular schooling and centralized control versus local authority. Primary education remains a formidable site of contentious politics. The teaching of racial history in

⁵⁹ Kohli (2004) observes that South Korea's developmental state encouraged deliberation between policymakers and industrial elites, yet remained "repressive and authoritarian" in its dealings with labor. Cf. Sandbrook et al. (2007), who argue that *democratic* developmental states are better at promoting citizen participation and social equity.

schools in the United States or laws supporting the education of girls in parts of South Asia are but two contemporary examples.⁶⁰ These and other cases, from across countries and historical periods, suggest that the espousal of education in the abstract need not translate into political support during moments of implementation.

2.7 ALTERNATIVE POLITICAL EXPLANATIONS

This section situates my theory against alternative explanations for implementation. Chapter 1 noted some of these explanations, including levels of economic development, geography, the design of formal institutions, the education policy framework and, importantly, sociocultural norms, which are accounted for in my research design. Below, I consider political explanations for differences in the delivery of primary education in northern India.

2.7.1 Clientelism

An influential line of scholarship on distributive politics in developing countries observes that clientelist states provide public services selectively for electoral reasons. Clientelism, defined as the *quid pro quo* trading of material benefits for political support, can manifest in different forms, from direct “vote-buying” and patronage-based hiring, to the targeting of particular geographies or ethnic groups (Kitschelt and Wilkinson 2007; Stokes et al. 2013; Khemani 2015). Policy implementation under clientelism is seen as informal, discretionary and contingent on political support, in contrast to programmatic delivery through well-defined rules (Hicken 2011, 291). Yet, social programs do sometimes reach citizens in clientelist systems, suggesting possible avenues for implementation (Brun and Diamond 2014; Weitz-Shapiro 2014). As Hicken advises, “our standard for comparison should be not only programmatic political systems but also predatory or exploitative systems” (2011, 302). Accordingly, Table 2.5 summarizes the clientelism literature’s expectations alongside those of my theory.

At one end of the spectrum are predatory bureaucracies, which have *de jure* rules but operate mainly through personal ties. These “neo-patrimonial” systems bend bureaucratic rules to the will of powerful

⁶⁰ Chapter 7 examines girls’ education reforms in UP, highlighting the conflicts induced by policies that counter patriarchy and caste-based exclusion.

TABLE 2.5 *Varieties of bureaucratic norms and their predicted effects on policy implementation*

Bureaucratic norms	Observable implications for bureaucratic behavior	Predicted effects on implementation of primary education
Predatory	Bureaucrats bend rules to extract private rents; grant access to the state based on personal ties	<i>Extractive non-implementation</i> • Little to no implementation • Primary education policy captured by elites
Clientelistic	Bureaucrats bend rules to target politically preferred societal groups; grant access to the state based on political connections	<i>Selective implementation</i> • Primary education delivered with sparse coverage and lower quality services • Some (e.g., politically visible) codifiable tasks performed
Legalistic	Bureaucrats adhere to rules and procedures; grant access to the state through official administrative channels	<i>Uneven implementation</i> • Primary education delivered with broad societal coverage and lower quality services • Most codifiable tasks performed • Some intensive tasks performed
Deliberative	Bureaucrats apply rules flexibly based on local needs; grant access to the state through collective discussions	<i>Adaptive implementation</i> • Primary education delivered with broad societal coverage and higher quality services • Most codifiable and intensive tasks performed • Some complex tasks performed

interests, what Khan (2018) aptly describes as “rule by law” rather than rule of law. In predatory bureaucracy, mass public services like primary education are either unimplemented or fully captured by elites. Compared to predatory bureaucracy, the avenues for implementation are wider under clientelism. In India’s “patronage-democracy,” Chandra (2004) argues, voting is an instrument for procuring state resources, and politicians exert control over policy implementation to favor particular ethnic groups.⁶¹ Clientelism is expected to lead to selective implementation of

⁶¹ These expectations are borne out in research on public goods provision in India (Keefer and Khemani 2005). Posner (2005) makes a similar argument in the African context. Cf. Hicken and Simmons (2008), who suggest that clientelism may generate efficiency gains through localized targeting.

primary education. The provision of inputs will be sparse or geographically uneven, biased toward particular regions and ethnic groups, while education services will be of inferior quality.

Although it accounts well for poor implementation overall, clientelism is less helpful in explaining variation in the quality of services. The state of UP is seen as an exemplar of clientelism in India. The data presented earlier shows, however, that UP's primary school system has achieved near-universal coverage, broad provision of school infrastructure and other inputs, largely in compliance with standards set by the RTE Act, while simultaneously exhibiting service irregularities and low quality education. One might answer that clientelistic states tend to deliver policies that are "visible" to voters, which allow politicians to claim credit for implementation (Mani and Mukand 2007). Along these lines, Harding and Stasavage (2014) observe that African governments subject to political competition tend to implement visible education policies, such as the abolition of school fees, thereby improving enrollments. They also find no impact of democratic competition on infrastructure provision or education quality. Although plausible, the visibility thesis has difficulty accounting for why some clientelistic states implement less visible, quality-enhancing services. In India, the state of HP delivers comparatively high quality primary education services, even as close observers report a "culture of informality" as well as "expectations of patronage and favoritism" within the bureaucracy (Sharma 1999; Das et al. 2015). Bihar, which by many accounts has a clientelistic state, undertook massive efforts to institute quality-enhancing education reforms, albeit with limited success in transforming classroom practices.

Contra the predictions of clientelism, my theoretical framework expects that bureaucrats committed to legalism work collectively to uphold policy rules and resist political subversion. Societal access to the state is granted through official channels for administrative purposes, but which need not always accord with politicians' preferences. My study of implementation in UP (Chapter 4) subjects these expectations to a strong test, examining how local bureaucrats respond to politically motivated ethnic targeting of primary education policies.⁶² I find evidence consistent with Chandra's (2004) ethnic particularism thesis, but I also find that bureaucrats resist interference and work toward programmatic

⁶² Chapter 4 examines the Ambedkar Village Program, which is often depicted as an example of ethnic targeting.

goals. Deliberative bureaucracy, meanwhile, is expected to implement primary education more effectively, owing to its ability to adapt policies to local needs. The empirical study of HP (Chapter 5) reveals that bureaucrats perceive local politicians as “contractors” (*thekedars*), who extract rents from school construction and other activities. Yet, these same officials also find ways to coordinate with society to deliver relatively high quality services.

To clarify, I do not discount the presence of clientelistic dynamics in northern India. Informal networks of caste, subcaste (*jati*) and clan (*biradari*) were active in my field research sites. Village residents that I interviewed often reported that access to the state depends on who one knows (*jan pehchan*).⁶³ Schoolteachers in all four case study states described the “market” for postings and transfers.⁶⁴ However, I challenge the premise that bureaucracy lacks independent authority under clientelism. By unpacking the institutional side of distributive politics, my argument joins recent studies that complicate our understanding of how clientelism operates in northern India (Thachil 2014; Auerbach 2019; Bussell 2019; Auerbach and Thachil 2019). Although bureaucracy features less prominently in these studies, it is plausible that bureaucratic agencies assist (or counter) political efforts to make public services visible to voters, for example, by forging an independent reputation among citizens.

2.7.2 Political Mobilization

If clientelism is an impediment to programmatic service delivery, political mobilization by disadvantaged groups may act as a counterweight. As electoral participation by the poor increases, the state is expected to redistribute more resources to the poor (Meltzer and Richard 1981). Kosack’s (2012) comparative study of education in Taiwan, Ghana and Brazil demonstrates that public spending tilts more toward mass education when poor constituencies are politically organized. Compared to other disadvantaged groups in India, Dalits, Banerjee and Somanathan (2007) find, have experienced larger gains in literacy, which is connected to their higher levels of voter turnout. Likewise, Nooruddin and Simmons (2015) associate higher turnout among the poor in state elections with increased education spending. They also show that state-level party systems

⁶³ As described in the Appendix, I was routinely asked my *jati* by bureaucrats, teachers and village residents during fieldwork.

⁶⁴ See also Ramachandran et al. (2018).

influence budgetary allocations. Indian states with two-party competition spend more on broad public goods, consistent with the findings of Chhibber and Nooruddin (2004). In line with these arguments, I observe that states with two-party systems (HP and Uttarakhand) implement primary education more effectively relative to states with more fragmented, multiparty systems (UP and Bihar). Political parties in the latter context target a narrower set of voters, lessening the incentive for governments to spend on inclusive social programs (Thachil and Teitelbaum 2015).

Still, it is plausible that heightened electoral participation by Dalits in the 1990s contributed to the growth of primary education in UP and Bihar. Under a majority government led by Mayawati, the head of the Bahujan Samaj Party (BSP), bureaucrats I interviewed reported experiencing heightened political pressure to monitor schools. This pressure sometimes came in the form of ethnic targeting of school infrastructure projects. In Bihar, the state government under Nitish Kumar put bureaucratic discipline high on the agenda and sought to institute quality-enhancing education reforms. Notwithstanding political commitment at the apex of the state, however, I show that implementation of education reforms suffered due to the legalistic commitments of local administration.

Political mobilization of Dalits and other marginalized groups may also support the mechanism of societal feedback. In rural UP, Dalit households spoke of their growing confidence and “recognition” (*pehchan*) in society following Mayawati’s ascendance as chief minister. Village collective action for public services, by Dalit women in particular, may have been connected to these political changes. The confidence that Dalit children displayed in school was suggestive of a broader political awareness. Yet, my fieldwork also revealed an abiding disappointment with electoral politics. Few households expected that elections would lead to better quality education services. And while efforts by Dalit parents to monitor primary schools were supported at times by elected officials, their involvement was relatively limited.

2.7.3 Social Capital

Another set of arguments suggests that bureaucratic performance is enhanced when communities are well endowed with social capital, norms and networks of trust and reciprocity that facilitate mutually beneficial cooperation (Woolcock 1998, 155). Coleman’s (1988) seminal work on social capital and education links the performance of school systems to neighborhood social networks. Based on the Tocquevillian insight that a

robust civil society supports democracy, Putnam (1994) broadens social capital's purview beyond neighborhoods to argue that the density of civic associations improves democratic governance. Studies positively associate social capital with wide-ranging outcomes, from poverty reduction and public goods provision to interethnic cooperation and communal peace (Narayan and Pritchett 1999). These ideas have helped spawn programs for participatory and community-based development, including institutional arrangements for village management of public services (Mansuri and Rao 2004).

Theories of social capital rest on uneasy empirical ground in India. Using survey evidence, Chhibber (2001) reports very low membership in formal civic associations in India. However, the density of formal associations may be an inappropriate indicator for social capital in rural India, where informal networks are more prevalent (Krishna 2003). Informal networks can also be exclusionary, restricting the participation of women, lower castes and other marginalized groups (Sanyal and Rao 2018).⁶⁵ In my field research sites, caste and gender relations diverged markedly from the horizontal ties posited by social capital theory. Notably, however, I observed multiple forms of social cooperation, including shared religious practices, which are an underexamined feature of Indian political life (Chhibber 2014). To ensure valid measurement, I studied village social capital in contextually appropriate ways, cataloging religious institutions, women's groups, caste associations and labor-sharing practices, along with the presence of NGOs and other formal organizations. I investigated how encompassing these organizations are of different social groups in my study areas and whether the underprivileged participate in them.

Social capital theory expects primary education to be implemented more effectively where local norms and networks facilitate collective action. The empirical evidence in this book lends partial support to this argument. Preexisting forms of village collective action are found to produce meaningful impacts on implementation. In particular, women's associations in all four states have played a constructive part in monitoring primary education services. The extent and robustness of collective action by rural women and other marginalized groups varied, however, depending on local structures of inequality.⁶⁶ In the Himalayan states of HP and Uttarakhand, the more

⁶⁵ On the negative features of social capital, see Portes (1998, 15–18).

⁶⁶ These observations reinforce the importance of social inequality for village collective action (Bardhan, Ghatak and Karaivanov 2007).

equitable distribution of agricultural land and relatively inclusive caste and gender norms improved the chances for village-wide collective action. Meanwhile, rural communities in the Gangetic plains of UP and Bihar were more fragmented economically and had more restrictive caste and gender norms, which weakened the prospects for village-wide collective action. Consistent with prior research, I find that women in the Gangetic plains experienced substantially greater roadblocks to participation in local governance (Agarwal 2010). Yet, even in this more challenging social environment, I find that disadvantaged households were far from apathetic and often attempted to mobilize collectively for primary education.

My comparative field research also shows that the durability of village collective action and its impact on the delivery of primary education varied across the four states, in ways that social capital theory cannot explain. Although HP and Uttarakhand have similar sociocultural norms and village associations – the latter state also had a robust women’s environmental movement history – I find that disadvantaged households in HP are far more effective in monitoring government schools, which I argue is enabled by deliberative bureaucracy. By contrast, legalistic bureaucracy in Uttarakhand is shown to place administrative burdens on disadvantaged households, inducing them to seek private substitutes and *non*-state services. Furthermore, I observe that differences in bureaucratic norms within UP sustain very different dynamics around societal participation, with divergent effects on implementation. As I demonstrate in Chapter 4, legalistic bureaucracy in UP reinforces local power imbalances, impeding collective action by Dalit women and other marginalized groups. By contrast, a study of Mahila Samakhya’s gender-oriented programming in UP (Chapter 7) shows how deliberative agencies work to counter hierarchical relations, enabling marginalized households to participate, thereby improving the integration of Dalit girls in school. In sum, the comparative analysis across states suggests that bureaucratic norms influence the efficacy of village collective action around public services. These findings lend support to Krishna’s (2003, 2011) argument that frontline institutions are critical for converting “stocks” of village social capital into “flows” of material benefits.

2.7.4 Political Culture

My theoretical argument’s emphasis on the collective understandings and behaviors of bureaucrats contrasts with cultural explanations. Seen as a system of values and symbols, culture shapes action by directing

human beings toward some pursuits rather than others (Douglas 1966; Geertz 1973). As noted in this chapter's opening, Weiner's (1991) landmark study of child labor in India advances cultural arguments about bureaucratic neglect of education. Through interviews of state officials, social activists, trade unionists and educators, he identifies the consensus view that children from poor households need to work rather than attend school. Weiner connects this political consensus to "belief systems of the state bureaucracy," rooted in the caste system, that "there is a division of labor between people who work with their minds and rule and people who work with their hands and are ruled, and that education should reinforce rather than break down this division" (1991, 5–6). This account is plausible considering the gross inequities of India's caste system. Upper caste privilege was inscribed in colonial education policies, which as noted in Chapter 3, has persisted after independence.

However, Weiner's argument also has some deficiencies, shared by other cultural explanations for education policy.⁶⁷ In seeking to demonstrate political consensus around non-provision of education, his argument has trouble accounting for large subnational differences in primary education. Weiner attributes the exceptional performance of Kerala to Christian missionary education. However, in other high performing states, such as Tamil Nadu and HP, missionary presence was negligible and child labor was prevalent in the agrarian economy (Drèze and Sen 2002, 177–179). Weiner's cultural argument also has difficulty accounting for change. Subsequent to the publication of his study, India's central government introduced programmatic initiatives for primary schooling (Mangla 2018). Instead of consensus, the analysis from Chapter 3 reveals considerable disagreement within the state over the provision of mass education.

What about subnational state-level differences in political culture? State elites that I interviewed pointed often to such differences. Officials in HP referred to the hill region as "*dev bhumi*" (land of the gods) and emphasized its "god-fearing" culture, which, they proposed, is what motivated teachers to serve, even when no one was monitoring them. These interlocutors were hard-pressed to explain, however, why the "lower hills" of HP – districts annexed from Punjab with cultural affinity to the plains – led the state in literacy. Bureaucrats in Uttarakhand

⁶⁷ Kosack (2012, 8) discusses the limitations of cultural explanations, including arguments about low reverence for education in Africa or "Confucian values" supporting education in East Asia.

likewise described their land as *dev bhumi* and flagged the many differences between hill-based (*pahari*) and plains-based (*maidani*) culture.

An alternative approach conceives of culture not as a unified corpus of values, but a fountain of diverse meanings and repertoires. According to Swidler (1986, 2013), culture does not determine the ends we pursue, but offers a “toolkit” to make sense of the world and construct strategies of action.⁶⁸ Culture’s internal contradictions and *dissensus* create openings for challenging status quo norms. Appadurai (2002) demonstrates how, for example, Mumbai’s urban poor subvert cultural understandings of sanitation and claim political recognition from the state through the performance of toilet festivals. This agent-centered understanding of culture has much to recommend it. As I show in the empirical chapters, marginalized groups in northern India use various “weapons of the weak” to demand accountability from the local state as well as dignity from society (Scott 1985).⁶⁹ However, the state’s response to such demands varies, I argue, depending on the content of bureaucratic norms. In the theoretical framework presented in this book, bureaucratic norms are *politically* constructed and maintained through the purposive actions of state actors. Bureaucracies are connected to society as well, but bureaucratic norms are not simply mirror images of sociocultural norms. Depending on the historical politics of state-building, the same cultural fabric can spawn vastly different types of bureaucracies.

2.8 CONCLUSION

I have argued that bureaucratic norms are an important catalyst for the implementation of public services like primary education. Subject to the same policy framework and formal administrative structures, differences in the informal norms of bureaucracy lead officials to interpret their policy mandates and relate to citizens in very different ways. Drawing on disciplinarily diverse bodies of scholarship, I advanced the analytical typology of legalistic bureaucracy and deliberative bureaucracy and delineated the causal mechanisms leading to varied implementation patterns and outcomes. Further, I connected the divergence in bureaucratic norms to the historical process of state-building, highlighting the political relationship between subnational states and central administration.

⁶⁸ For applications of this cultural approach to questions of development and public health, see Rao and Walton (2004) and Hall and Lamont (2009).

⁶⁹ The empirical chapters illustrate these attempts with examples from my fieldwork.

The theory advanced in this chapter is premised on the understanding that policy implementation is a political process. Comparative indicators revealed significant differences in the coverage, routine functioning and quality of primary education services in northern India, the empirical puzzle motivating my study. It is important to note that these comparative statistics, while important, do not fully capture the political meanings attached to education in rural India. For Dalits, rural women and other historically excluded social groups, participation in schooling and the delivery of public services are political acts, which can also spawn conflict and backlash from society. The empirical investigation (Chapters 4–7) brings these political moments to life.

My comparative field research in northern India builds and tests the foregoing theoretical argument, opening up the institutional black box of bureaucracy to study its internal dynamics and external relations with society. Against overwhelmingly pessimistic expectations of what bureaucracy can accomplish in developing country settings, I catalog striking cases of bureaucratic effectiveness as well as variation therein. Policy implementation is a causally complex process that depends on multiple factors. Accordingly, this chapter weighed the merits of alternative explanations and their expectations in relation to my theory. As the empirical analysis will demonstrate, some of these factors, including political mobilization, social capital and, in particular, caste and gender norms, are found to influence the implementation of primary schooling. However, they do not account fully for the varied outcomes analyzed in this book.

Chapter 3 sets the empirical backdrop for the book's comparative inquiry. I trace the historical political economy of the Indian state's shifting involvement in primary education since independence, with a focus on the expansion of national programming for primary education in the post-liberalization period. These policy changes have also sparked societal demands for quality services, raising the political salience of implementation.